



CHAPTER ccxx.

An Act to enable the mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne to construct and work additional tramways in and adjacent to the city to widen existing streets to construct new streets across and works in the Ouseburn Valley to make a new quay to acquire lands to establish a superannuation fund to raise further money and to confer various further powers upon the Corporation in respect of their existing quays and for other purposes. [15th August 1904.]

WHEREAS the city and county of Newcastle-upon-Tyne (in this Act called "the city") is subject to the Acts relating to municipal corporations and the mayor aldermen and citizens of the city (in this Act called "the Corporation") acting by the council are the urban sanitary authority for the district thereof :

And whereas the several local Acts and Provisional Orders or parts thereof mentioned in the First Schedule to this Act are in force within the city which Acts and Orders are in this Act referred to collectively as "the former Acts" and each of them separately as an Act or Order of the year in which the same was passed or made the Newcastle-upon-Tyne Improvement Act 1882 and the Newcastle-upon-Tyne Corporation Loans Act 1882 being respectively referred to as "the Improvement Act of 1882" and "the Loans Act of 1882" :

45 & 46 Vict.
c. clxxii.
45 & 46 Vict.
c. ccxxxv.

And whereas under the powers of certain of the former Acts the Corporation have constructed various tramways in the city and extensions of tramways into the adjacent urban districts of Walker Benwell and Fenham and Gosforth in the county of

A.D. 1904. — Northumberland and are working the same under powers in that behalf granted by the Act of 1899 and the Act of 1902 :

And whereas it is expedient that the Corporation should be authorised to construct certain additional tramways as in this Act described in the city and further extensions of tramways into the said urban districts of Walker and Benwell and Fenham :

And whereas it is expedient that the Corporation should be authorised to construct and maintain the street improvements herein-after mentioned :

And whereas the stream known as the Ouseburn flows through the city into the River Tyne and the valley of that stream divides certain portions of the city and the access between such portions is inconvenient and it is expedient that the Corporation should be empowered to culvert a portion of the said stream and fill up and level and construct new streets across the valley thereof :

And whereas the Corporation are the owners of quays on the northern bank of the River Tyne in the city and such quays are carried on and managed by the Corporation and it is expedient that the Corporation should be empowered to construct the additional quay works by this Act authorised and to improve the existing quays and that the limits of the quays of the Corporation should be defined :

And whereas the Corporation are by the Act of 1837 as amended by the Acts of 1841 1871 and 1877 authorised to levy the package dues specified in those Acts and it is expedient that certain of those dues should be increased and that the method of assessment thereof should be altered :

And whereas it would be to the advantage of merchants and others using the quays of the Corporation if powers were granted to the Corporation of issuing transferable or negotiable certificates and warrants for the delivery of goods :

And whereas it is expedient that the Corporation should be empowered to acquire lands as in this Act provided :

And whereas it is expedient that the Corporation should be allowed to grant and pay superannuation or retiring allowances to all or any of the officers and servants in their employ and that provisions as in this Act contained should be made with respect thereto :

And whereas by an agreement dated the third day of April one thousand nine hundred and one and made between the Corporation

of the one part and Alexander Laing of Newcastle-upon-Tyne of the other part the said Alexander Laing has agreed to provide at his own cost an art gallery for the city in consideration of the grant of a site therefor by the Corporation and of the covenants on the part of the Corporation contained in the said agreement and it is expedient that the said agreement should be confirmed and made binding upon the parties thereto : A.D. 1904.

And whereas the Corporation are entitled to the soil of the town moor of Newcastle-upon-Tyne (including that portion thereof known as "the Castle Leazes") for an estate in fee simple but the same is subject to a right or benefit of herbage in the resident freemen or burgesses of the city and the resident widows of deceased freemen or burgesses of the city which right or benefit is herein-after referred to as "the herbage right" :

And whereas by the Act of 14 George III. chapter 105 (private) (in this Act referred to as "the Town Moor Act of 1774") provisions were enacted for and in relation to the enjoyment management and improvement of the surface of the town moor and within certain limits the inclosure thereof :

And whereas by the Act of 1870 (section 6) a committee of stewards and wardens were constituted (in this Act referred to as "the stewards' committee") who were thenceforward authorised and required to act for and on behalf of the stewards and wardens and freemen and widows of freemen for all purposes relating to the town moor :

And whereas the Corporation have laid out and are constructing along the eastern side of that portion of the town moor known as the Castle Leazes a new road leading from Saint Thomas' Terrace to Claremont Place :

And whereas the construction of the said new road will cause certain small pieces of the said Castle Leazes to be severed from the remainder thereof and it is expedient that the Corporation should be empowered to sell the said pieces of land subject to the conditions set forth in this Act and that the herbage right thereon should be extinguished :

And whereas it is expedient that further borrowing powers be conferred on the Corporation for the purposes of this Act :

And whereas it is expedient that other provisions as are in this Act contained should be sanctioned :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

A.D. 1904.

And whereas estimates have been prepared by the Corporation of the cost of constructing the tramways and works by this Act authorised including the purchase of lands and such estimates are as follows :—

For the construction of the tramways seventy-five thousand pounds ;

For equipment of the tramways ninety-five thousand pounds ;

For street widenings thirteen thousand pounds ;

For the Ouseburn Valley works one hundred and sixty thousand seven hundred and sixty-six pounds ;

For the new quay and the works appliances and conveniences in connexion therewith three hundred and thirteen thousand pounds ;

For works appliances and conveniences in connexion with the existing quays two hundred thousand pounds :

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the council at a meeting held on the eighteenth day of November one thousand nine hundred and three after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the Newcastle Daily Journal being a newspaper published and circulating in the city (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the improvement rate and city fund and city rate :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the third day of February one thousand nine hundred and four being not less than fourteen days after the deposit in Parliament of the Bill for this Act :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

And whereas plans and sections showing the lines situation and levels of the tramways and the other works by this Act authorised and plans showing the lands which may be acquired under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of and describing such lands have been deposited with the clerk of the peace for the county of Northumberland and the clerk of the peace for the city and county of Newcastle-upon-Tyne and are in this Act referred to as the deposited plans sections and book of reference: A.D. 1904.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Newcastle-upon-Tyne Corporation Act 1904 and this Act and the former Acts may be cited as the Newcastle-upon-Tyne Improvement Acts 1837 to 1904. Short title.

2. This Act is divided into Parts as follows:—

Act divided
into Parts.

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Street Widenings.

Part IV.—Ouseburn Valley Works.

Part V.—Quays.

Part VI.—General Provisions as to Tramways and Works.

Part VII.—Lands.

Part VIII.—Superannuation.

Part IX.—Finance.

Part X.—Miscellaneous.

3. The following Acts and parts of Acts (that is to say):— Incorporation of general Acts.

The Lands Clauses Acts;

Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870;

A.D. 1904.

Sections 27 and 28 of the Harbours Docks and Piers Clauses Act 1847 and the clauses of that Act with respect to the protection of the harbour dock and pier and the vessels therein from fire or other injury (except clause 73) and with respect to the byelaws to be made by the undertakers ;

so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with this Act And in the said clauses of the Harbours Docks and Piers Clauses Act 1847 the term "pier" shall mean the quays of the Corporation and the term "harbour-master" shall mean the quay-master.

Interpreta-
tion.

4. In this Act unless otherwise expressly provided or the context otherwise requires—

Terms to which meanings are assigned by the Improvement Act of 1882 or by the Loans Act of 1882 or by the former Acts or by any Act wholly or partially incorporated with this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction ;

"The tramways" means the tramways authorised by this Act ;

"The Corporation tramways" includes the tramways authorised by this Act and all tramways and tramroads for the time being belonging to or leased or worked by the Corporation ;

"Mechanical power" includes steam compressed air electrical and every other motive power not being animal power ;

"Engine" includes motor ;

"Street" includes any highway and any public bridge and any public road lane footway square court alley or passage whether a thoroughfare or not ;

"The existing quays" means the existing quays and works belonging to the Corporation within the limits defined by this Act ;

"The new quay" means the quay and works by this Act authorised ;

"The quays of the Corporation" means the existing quays and the new quay ;

“Tramway revenue” means all revenue of the Corporation A.D. 1904.
tramways ;

The loans fund” means the loans fund established under
the provisions of the Loans Act of 1882 ;

“Statutory security” means any security in which trustees
are for the time being by or under any Act of Parliament
passed or to be passed authorised to invest trust money
and any other mortgage bond debenture stock or other
security authorised by or under any Act of Parliament
passed or to be passed of any local authority as defined
by section 34 of the Local Loans Act 1875 but does not
include any securities of the Corporation or any annuities
rentcharges and securities payable to bearer ;

“The Public Health Acts” means the Public Health Act 1875
and any Act amending the same.

PART II.

TRAMWAYS.

5. Subject to the provisions of this Act the Corporation Power to
make tram-
ways.
may lay down use and maintain in the lines and situations and
according to the levels shown on the deposited plans and sections
the tramways herein-after described with all necessary and proper
rails plates sleepers channels passages and tubes for ropes cables
wires and electric lines junctions turntables turnouts crossings
passing-places poles posts conduits section boxes manholes stables
carriage-houses engine boiler and dynamo houses sheds buildings
engines dynamos batteries transforming stations works and con-
veniences connected therewith respectively.

The following are the tramways herein-before referred to
and authorised by this Act :—

Tramway No. 1.—A double line 1 mile 2 furlongs 5·3 chains
in length situate wholly in the parish of Benwell and urban
district of Benwell and Fenham in the county of North-
umberland commencing by a junction with the existing
tramway of the Corporation at its termination in Scotswood
Road at the point where the city boundary crosses that
road and passing in a westerly direction along and ter-
minating in the said Scotswood Road at its junction with
the road leading to Lemington :

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Tramway No. 4.—A double line 5 furlongs 6·6 chains in length situate wholly in the city commencing in Scotswood Road in the parish of Elswick by a junction with the existing tramway in that street 1 chain or thereabouts west of Gloucester Street passing thence into and along Gloucester Street Wentworth Place and Gloucester Road to and terminating in Westgate Road in the parish of Westgate by a junction with the existing tramway in that road at a point 1 chain or thereabouts westward from the junction of Westgate Road and Gloucester Road:

Tramway No. 4A.—A double line 1·50 chains in length situate wholly in the said parish of Elswick commencing in Scotswood Road by a junction with the existing tramway therein 1 chain or thereabouts eastward from Gloucester Street and passing along Scotswood Road into and terminating in Gloucester Street by a junction with Tramway No. 4 at a point thereon 1 chain or thereabouts northward from Scotswood Road:

Tramway No. 4B.—A double line 1·10 chains in length situate wholly in the said parish of Elswick commencing in Gloucester Street by a junction with Tramway No. 4 at a point thereon 1 chain or thereabouts south-eastwards from Westmorland Road and passing in a north-westerly direction along Gloucester Street into and terminating in Westmorland Road by a junction with the existing tramway therein 1 chain or thereabouts westward from Gloucester Street:

Tramway No. 4C.—A double line 1·10 chains in length situate wholly in the said parish of Elswick commencing in Gloucester Street by a junction with Tramway No. 4 1 chain or thereabouts south-eastwards from Westmorland Road and passing in a north-easterly direction along Gloucester Street into and terminating in Westmorland Road by a junction with the existing tramway in that road 1 chain or thereabouts eastward from Gloucester Street:

Tramway No. 4D.—A double line 1·20 chains in length situate wholly in the said parish of Elswick commencing in Westmorland Road by a junction with the existing tramway therein 1 chain or thereabouts westward from Gloucester Street and passing in a northerly direction along Westmorland Road into and terminating in Wentworth Place by a junction with Tramway No. 4 at a point 1 chain or thereabouts north-west from Westmorland Road:

Tramway No. 4E.—A double line 1·1 chains in length situate wholly in the parish of Elswick commencing in Westmorland Road by a junction with the existing tramway therein 1 chain or thereabouts eastwards from Gloucester Street and passing westward along the said Westmorland Road into and terminating in Wentworth Place by a junction with Tramway No. 4 at a point 1 chain or thereabouts north-west of Westmorland Road : A.D. 1904

Tramway No. 4F.—A double line 1·1 chains in length situate wholly in the said parish of Elswick commencing in Wentworth Place by a junction with Tramway No. 4 at a point 1 chain or thereabouts southward from Elswick Road and passing westward along Wentworth Place into and terminating in Elswick Road by a junction with the existing tramway therein 1 chain or thereabouts westward from Gloucester Road :

Tramway No. 4G.—A double line 1·1 chains in length situate wholly in the said parish of Elswick commencing in Wentworth Place by a junction with Tramway No. 4 at a point 1 chain or thereabouts southward from Elswick Road and passing in a north-easterly direction along Wentworth Place into and terminating in Elswick Road by a junction with the existing tramway therein 1 chain or thereabouts north-east from Gloucester Road :

Tramway No. 4H.—A double line 1·1 chains in length situate wholly in the said parish of Elswick commencing in Elswick Road by a junction with the existing tramway therein 1 chain or thereabouts westwards from Gloucester Road and passing in a north-easterly direction along the said Elswick Road into and terminating in Gloucester Road by a junction with Tramway No. 4 at a point 1 chain or thereabouts north of Elswick Road :

Tramway No. 4J.—A double line 1·2 chains in length situate wholly in the said parish of Elswick commencing in Elswick Road by a junction with the existing tramway therein 1 chain or thereabouts north-east from Gloucester Road and passing in a north-westerly direction along Elswick Road into and terminating in Gloucester Road by a junction with Tramway No. 4 at a point 1 chain or thereabouts north of Elswick Road :

Tramway No. 5.—A double line 1 mile 0 furlong 5 chains in length commencing in the parish of Saint Andrew in

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the city by a junction with the existing tramway in Barrack Road at a point thereon 2 chains or thereabouts south-east of the road leading from Barrack Road to the Leazes Park and passing thence along Barrack Road into and along Ponteland Road and the road over the town moor leading from Ponteland Road to Fenham Hall into and terminating in the parish of Fenham in the said urban district of Benwell and Fenham at a point in the said road over the town moor 7 chains or thereabouts westward from the point where the city boundary crosses that road :

Tramway No. 5A.—A double line 1·90 chains in length situate wholly in the city commencing in the said parish of Westgate in Stanhope Street by a junction with the existing tramway in that street 1 chain or thereabouts south-west from the junction therewith of Wellington Street and passing northwards into and terminating in Barrack Road in the said parish of Saint Andrew by a junction with Tramway No. 5 at a point 1 chain or thereabouts westward from the junction of Barrack Road with the said road leading from that road to the Leazes Park :

Tramway No. 5B.—A double line 1·10 chains in length situate wholly in the said parish of Saint Andrew commencing in the said Barrack Road by a junction with Tramway No. 5 at a point 1 chain or thereabouts south-east from the junction of that road with Hunter's Road and passing northward into and terminating in the last-mentioned road by a junction with the existing tramway therein at a point 1 chain or thereabouts north-east of Barrack Road :

Tramway No. 5C.—A double line 1·10 chains in length situate wholly in the said parish of Saint Andrew commencing in the said Barrack Road by a junction with Tramway No. 5 at a point 1 chain or thereabouts south-east from Hunter's Road and passing westwards into and terminating in Brighton Grove by a junction with the Tramway No. 9 authorised by the Act of 1899 at a point 1 chain or thereabouts south-west from Barrack Road :

Tramway No. 5D.—A double line 1·20 chains in length situate wholly in the said parish of Saint Andrew commencing in Hunter's Road by a junction with the existing tramway therein 1 chain or thereabouts north-east of the

junction of that road with Barrack Road and passing westward into and terminating in Ponteland Road by a junction with Tramway No. 5 at a point 1 chain or thereabouts north-west of Hunter's Road: A.D. 1904.

Tramway No. 5E.—A double line 1·20 chains in length situate wholly in the said parish of Saint Andrew commencing in Brighton Grove by a junction with the said authorised Tramway No. 9 therein 1 chain or thereabouts south-west of the junction of that road with Barrack Road and passing northwards into and terminating in Ponteland Road by a junction with Tramway No. 5 at a point 1 chain or thereabouts north-west of Hunter's Road:

Tramway No. 6.—A double line 2 furlongs 2·85 chains in length situate wholly in the city commencing in the parish of All Saints by a junction with the existing tramway in Mosley Street at a point thereon 1 chain or thereabouts north-east of the junction of Mosley Street with Dean Street and passing thence into and along Dean Street the Side and Queen Street (partly in the parish of All Saints and partly in the parish of Saint Nicholas in the city) to and terminating in King Street in the parish of All Saints 1 chain or thereabouts from the junction of King Street with the Quay Side:

Tramway No. 6A.—A double line 1·25 chains in length situate wholly in the said parish of Saint Nicholas commencing in Mosley Street by a junction with the said existing tramway therein 1 chain or thereabouts south-west of the junction of Mosley Street with Dean Street and passing eastwards into and terminating in Dean Street by a junction with Tramway No. 6 at a point 1 chain or thereabouts south-east of the junction of Mosley Street and Dean Street:

Tramway No. 7.—A double line 7 furlongs 0·8 chain in length situate wholly in the city commencing in the said parish of All Saints by a junction with the existing tramway in New Bridge Street at a point thereon 1 chain or thereabouts westward of the junction of Ridley Street with New Bridge Street and passing thence into and along Ridley Street Clarence Street and Clarence Crescent into the parish of Byker thence along Portland Road into the parish of Saint Andrew continuing along Portland Road and thence into the parish of Jesmond and along Benton

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Terrace and Sandyford Road and terminating in the said parish of Jesmond by a junction with the existing tramway in Jesmond Road at a point thereon 1 chain or thereabouts north-east of the junction therewith of Sandyford Road :

Tramway No. 7A.—A double line 1·40 chains in length situate wholly in the said parish of All Saints commencing in New Bridge Street by a junction with the existing tramway therein 1 chain or thereabouts east of the junction of New Bridge Street with Ridley Street and passing into and terminating in Ridley Street by a junction with Tramway No. 7 at a point 1 chain or thereabouts northwards from the junction of the said streets :

Tramway No. 8.—A double line 7 furlongs 0·8 chain in length commencing in the parish and urban district of Walker in the county of Northumberland by a junction with the existing tramway in Shields Road at a point therein 1 chain or thereabouts westward from its junction with Chillingham Road South and passing into and along the said Chillingham Road South to and across the bridge over the North Eastern Railway into and along Chillingham Road and Benton Road in the parish of Heaton in the city and terminating in that parish in Benton Road at a point 1 chain or thereabouts north of the junction of Chillingham Road and Benton Road :

Tramway No. 9.—A double line 1 furlong 7·10 chains in length situate wholly in the said parish of Heaton commencing in Benton Road by a junction with Tramway No. 11 authorised by the Act of 1899 at a point 1 chain or thereabouts south-west of the junction of Benton Road and Heaton Road and passing along Benton Road and terminating in Chillingham Road by a junction with Tramway No. 8 at a point 1 chain or thereabouts south of the junction of those roads :

Tramway No. 9A.—A double line 1 chain in length situate wholly in the said parish of Heaton commencing in Benton Road by a junction with Tramway No. 9 at a point 1 chain or thereabouts north-east of the junction of Benton Road with Heaton Road and passing into and terminating in Heaton Road by a junction with the said authorised Tramway No. 11 at a point 1 chain or thereabouts south-east of the junction of the said roads :

Tramway No. 12.—A double line 2 furlongs 8·2 chains in length commencing by a junction with the existing tramway in Jesmond Road in the said parish of Jesmond at the junction of Jesmond Road with Jesmond Dene Road and passing into and along Benton Bank and terminating by a junction with the said authorised Tramway No. 11 in Benton Road in the said parish of Heaton 3 chains or thereabouts eastward from the road into Jesmond Park : A.D. 1904.

Provided that the Corporation shall not construct Tramway No. 1 by this Act authorised except by agreement with the Scotswood Bridge Company or other the owner or owners for the time being of the undertaking of that company and the Corporation and the said company are hereby authorised to enter into and carry into effect any agreement or agreements with respect to the construction maintenance and working of the said Tramway No. 1.

6. The tramways shall be constructed on a gauge of four feet eight-and-a-half inches and carriages or trucks adapted to run on railways shall not be used thereon. Gauge of tramways.

7. Tramway No. 12 shall not be constructed until the Street Widening No. 2 by this Act authorised shall have been completed and Tramway No. 8 shall not be opened for traffic until the Corporation shall have widened the roadway for a distance of not less than sixty feet in each direction from the intersection of Chillingham Road with Shields Road so as to allow a space of not less than nine feet six inches to intervene between the outside of the footpath on the western side of Chillingham Road and the nearest rail of the tramway Provided further that the footpaths on the road as widened shall not be of less width than the existing footpaths. Restrictions on construction of Tramways Nos. 8 and 12.

8. The tramways shall be completed and opened for public traffic within five years from the passing of this Act and on the expiration of that period the powers by this Act granted for constructing the same or otherwise in relation thereto shall cease except as to so much of the tramways as shall then be completed. Period for completion of tramways.

9. Subject to the provisions of this Act the tramways shall for all purposes be deemed to form part of the tramway undertaking of the Corporation. Tramways to form part of tramway undertaking of Corporation.

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Inspection
by Board of
Trade.

10. No part of the tramways shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade.

Incorporation of cer-
tain sections
of Act of
1877 Im-
provement
Act of 1882
and Acts of
1899 and
1902.

11. The following sections of the following Acts (that is to say):—

Of the Act of 1877—

- Section 15 (Traffic upon tramways);
- Section 16 (Corporation may use tramways for sanitary purposes &c.);
- Section 18 (Tolls for animals goods &c.);
- Section 19 (Regulations as to tolls);
- Section 20 (Limitation of tolls in case of demise);
- Section 22 (As to user of tramways and tolls thereon when left open to be used by the public);
- Section 23 (Tolls if tramways left open to be used by the public);
- Section 24 (Persons using the tramways to permit servants of the Corporation to ride in each carriage &c. free of charge);
- Section 25 (Certain provisions of the Tramways Act 1870 as to licences extended to persons using the tramways when left open to be used by the public);
- Section 26 (Lessees not to be bound to carry goods &c. unless as provided herein);
- Section 27 (Provisions as to carriage of goods &c.); and
- Section 28 (As to payment of tolls):

Of the Improvement Act of 1882—

- Section 22 (Byelaws as to tramways);
- Section 23 (Penalty for not maintaining rails and road in good condition);
- Section 24 (Application of road materials excavated in construction of works);
- Section 25 (Provisions as to construction of tramways);
- Section 26 (As to rails of tramways);
- Section 28 (Passengers' luggage);
- Section 29 (Penalties under the tramway provisions):

Of the Act of 1899—

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- Section 13 (Temporary tramways);
- Section 14 (Junctions with tramways which can be worked in connexion with Corporation tramways);
- Section 19 (Provisions as to motive power);
- Section 20 (Special provisions as to use of electrical power);
- Section 22 (Mechanical power works to be subject to sections 30 and 33 of Tramways Act 1870);
- Section 25 (Powers of sale working &c.);
- Section 26 (Power as to supply of electric energy);
- Section 27 (Power to Corporation to work tramways);
- Section 29 (As to fares on Sundays or holidays);

Of the Act of 1902—

- Section 12 (Rates for passengers);
- Section 13 (Periodical revision of rates and charges);
- Section 19 (Corporation and local and road authorities may agree for widening roads);
- Section 20 (Power to construct and provide appliances &c.);
- Section 22 (Cheap fares for labouring classes);
- Section 23 (Payment of tolls);
- Section 35 (Penalty for malicious damage);

shall so far as the same are applicable in that behalf and are not inconsistent with the provisions of this Act extend and apply *mutatis mutandis* to and in relation to the tramways.

12. For the protection of the National Provincial Bank of England Limited their successors and assigns (in this section referred to as "the owners") the owners or reputed owners of the premises known as the Newcastle-upon-Tyne branch office of the National Provincial Bank of England situate at the corner of Mosley Street and Dean Street (which premises and the cellars and vaults beneath and adjoining the same are in this section referred to as "the bank premises") the following provisions shall unless otherwise agreed between the owners and the Corporation be observed and have effect (that is to say):—

For protection of National Provincial Bank of England Limited.

- (1) In the construction reconstruction or alteration of the Tramway No. 6A by this Act authorised the Corporation shall not reduce the width of the footpaths in Mosley Street and Dean Street in front of or above

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any portion of the bank premises and notwithstanding anything in this Act contained or shown on the deposited plans the Corporation shall not lay the said tramway so that at any point a less distance than four feet shall intervene between the nearest rail of the tramway and the outside of such footpaths or any part thereof :

- (2) The Corporation shall to the reasonable satisfaction of the owners construct and maintain the said tramways so far as the same shall pass over any portion of the bank premises upon a bed of concrete resting upon such portion of the bank premises with three railway bars embedded in it which bed of concrete shall extend between a distance of eighteen inches from the south side of the rail of the tramway nearest to the bank premises over and for a distance of eighteen inches beyond the north-west and north-east sides of the said bank premises where they extend under the roadways of Dean Street and Mosley Street.

Local authority to have access to sewers.

13. Every local authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Corporation and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of such local authority as if the same were a pipe for the supply of gas or water.

Corporation may reduce width of footway for constructing tramway.

14. For the purpose of constructing or reconstructing or altering any tramway in any street or road the Corporation may increase the width of the roadway of such street or road by reducing the width of the footway on each or either side of such street or road. Provided that no footway be so reduced to less than six feet six inches in width :

If in the portion of any footway so added to the roadway there shall be any electric wire box or appliance belonging either to the Newcastle and District Electric Lighting Company Limited or the Newcastle-upon-Tyne Electric Supply Company Limited the company to whom such electric wire box or appliance shall belong may at the reasonable cost of the Corporation remove and place such electric wire box or appliance under the reduced footway :

Provided also that in the case of any street or road outside the city the Corporation shall before exercising the powers of this section obtain the consent of the local authority for the district and of the road authority having jurisdiction over such street or road. A.D. 1904.

15. The Corporation may subject to the provisions of this Act but as to any tramways without the city only with the consent of the local authority and road authority make maintain alter and remove such crossovers passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the Corporation tramways or for providing access to any warehouses stables or carriage-houses or works of the Corporation or their lessees. Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto. Power to make additional crossings &c.

16. The Corporation in any street in which they have laid down or are authorised to lay down a single line of tramway may with the consent of the Board of Trade in lieu thereof lay down a double line or an interlacing line of tramway and in any street in which they have laid down or are authorised to lay down a double line they may with the like consent of the Board of Trade in lieu thereof lay down an interlacing line or a single line of tramway and in any street in which they have laid down or are authorised to lay down an interlacing line of tramway they may with the like consent of the Board of Trade in lieu thereof lay down a single line or a double line of tramway and if at any time after the construction of any tramway of the Corporation the street in which the same is laid has been or shall be altered or widened the Corporation may take up and remove such tramway or any part thereof and reconstruct the same in Power to lay down double or interlacing lines in place of single lines and vice versa.

A.D. 1904. such position in the said street as they think fit Provided that in the exercise of the powers of this section no rail shall except with the consent of the Board of Trade be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches shall intervene between such rail and the outside of the footpath on either side of the road if one-third of the owners or one-third of the occupiers of the houses shops or warehouses abutting upon the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Corporation within three weeks after receiving from the Corporation notice in writing of their intention express their objection thereto.

Crossovers to be constructed in certain cases.

17. Where in any road in which a double line of tramway is laid there shall be a less space between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Corporation shall if and where required by the Board of Trade construct a crossover or crossovers connecting the one tramway with the other and by the means of such crossover or crossovers the traffic shall when necessary be diverted from one tramway to the other.

Purposes for which certain tramways may be used.

18. Tramway No. 1 shall be used only for the carriage of—

- (1) Passengers and their luggage ;
- (2) Small parcels not exceeding twenty-eight pounds in weight ;
- (3) Goods and minerals required for the purposes of the tramway undertaking of the Corporation and for the use of any generating station supplying electric current for working the tramways ; and
- (4) For sanitary purposes by the Corporation and by any other local authority with the consent of the Corporation ;

and Tramway No. 6 shall not be used for the conveyance of goods or minerals other than such as may be consigned from or to places within the city.

For protection of North Eastern Railway Company as to tramways.

19. For protection of the North Eastern Railway Company (herein-after in this section called "the company") the following provisions shall unless otherwise agreed between the company and the Corporation apply and have effect :—

- (1) The Corporation shall so construct maintain and use their tramways and all works connected therewith (in

this section referred to as "the tramways") as not to injure any railway or work of the company : A.D. 1904.

- (2) In the event of injury being occasioned to any railway or work of the Company by the construction maintenance repair user or removal of the tramways the company may at the expense of the Corporation restore such railway or work to as good a condition as it was in before such injury was occasioned :
- (3) The Corporation shall as early as practicable restore any road damaged by the execution of their works which the company are under an obligation to maintain and if they fail to do so the company may restore such road at the expense of the Corporation :
- (4) The following provisions shall apply to so much of the tramways as shall pass over or be constructed upon the existing bridges carrying roads over the railways of the company or the approaches to such bridges :—

(A) Whenever the company shall require to reconstruct strengthen alter or repair any of the said bridges or the approaches thereto or to widen or alter their railways thereunder the Corporation shall pay to the company any additional expense to which the company may be put in carrying out such works by reason of the existence of the tramways so far as such additional expense is attributable to any tube pipe wire or other work for propelling the cars upon the tramways or conveying energy or power for that purpose and if it shall be necessary for carrying out such works as aforesaid that the working and user of the tramways over such bridge or the approaches thereto shall be wholly or partially stopped or delayed or that the tramways shall be temporarily diverted or removed and the company shall (except in cases of emergency) give to the Corporation seven clear days notice in writing requiring such stoppage delay diversion or removal the working and user of such tramways shall be stopped or delayed or such tramways shall be diverted or removed accordingly but only for so long as shall be absolutely necessary for carrying out such works as aforesaid If having regard to

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the nature and extent of such works of the company and to the traffic over such bridge a temporary diversion of the tramways over such bridge or approaches is necessary the working and user of such tramways shall not be stopped or delayed longer than is absolutely necessary for effecting such diversion and the restoration of such tramways to such bridge and approaches. The company shall not be liable for any compensation or claim in respect of such stoppage delay diversion or removal of the tramways as aforesaid ;

(B) In case it shall be necessary to reconstruct alter or strengthen any of the said bridges owing to the weight or mode of construction of the carriages or other vehicles used on the tramways or the mode of working the same imposing upon such bridge a greater strain than is imposed by the traffic which now passes thereover such reconstruction alteration or strengthening shall be effected in all things at the expense of the Corporation :

- (5) The Corporation shall indemnify the company against any expense which they may be put to in repairing and maintaining so much of the road over any railway bridge or the approaches thereto as the Corporation are liable to repair and maintain under the provisions of the Tramways Act 1870 :
- (6) Whenever in this section it is provided that any work is to be done under the superintendence of the company's engineer such superintendence if given shall be at the cost of the Corporation but if after seven days notice given by the Corporation of their intention to do the work such superintendence is refused or withheld it shall be lawful for the Corporation to do the work without such superintendence :
- (7) If any difference shall arise under this section between the Corporation and the company the matter in difference shall unless otherwise agreed be determined by an arbitrator to be appointed by the Board of Trade.

For protec-
tion of Post
Office tele-
graph lines,

20. In the event of any of the Corporation tramways being worked by electricity or of electrical energy being supplied or used for the purposes of the quays of the Corporation or for any other

purposes of the Corporation the following provisions shall have effect :— A.D. 1904.

- (1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the Corporation tramways by electricity or for the supply or use of electrical energy for any other purpose of the Corporation is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Corporation

A.D. 1904.

as to any requirement so made shall be determined by arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously

affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work: A.D. 1904.

- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Corporation" includes their lessees and any person owning working or running carriages on any of the Corporation tramways.

21. Nothing in this Act contained shall exempt the Corporation or the tramways from the provisions of any general Act relating to tramways passed before or after the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act. Provision as to general Tramway Acts.

PART III.

STREET WIDENINGS.

22. Subject to the provisions of this Act the Corporation may in the lines and situation shown on the deposited plans and Power to execute street works

A.D. 1904. according to the levels shown on the deposited sections make and maintain the following street works :—

Widening No. 1.—The widening of Elswick Road on the north-west side between Elswick Street and Back Elswick Street :

Widening No. 2.—The widening and improvement of Benton Bank on the north side from a point 750 feet or thereabouts west of the centre of the bridge carrying Benton Bank over the Ouseburn to a point 350 feet or thereabouts east of the centre of the said bridge.

Power of deviation.

23. In constructing the said street works the Corporation may deviate from the centre line shown on the deposited plans to the extent of the limits of deviation marked thereon and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet.

PART IV.

OUSEBURN VALLEY WORKS.

Works.

24. Subject to the provisions of this Act the Corporation may make and maintain the following works together with any incidental works connected therewith or convenient therefor (that is to say) :—

Work No. 1.—A new street across the valley of the Ouseburn commencing by a junction with Dinsdale Road near Starbeck Avenue and terminating by a junction with Newington Road near Stratford Grove West :

Work No. 2.—A new street across the valley of the Ouseburn commencing by a junction with Portland Road near Clarence Crescent and terminating by a junction with Newington Road near Stratford Grove West :

Work No. 3.—A new street across the valley of the Ouseburn commencing by a junction with Portland Road near Gosforth Street and terminating by a junction with Newington Road near Bolingbroke Street :

Work No. 4.—A culvert for the enclosing straightening and diversion of the stream called the Ouseburn commencing in the said stream at a point 10 chains or thereabouts south-west of the bridge crossing the said Ouseburn at

Jesmond Vale and terminating in the said stream at a point 1 chain or thereabouts north of the viaduct carrying the North Eastern Railway over the Ouseburn Valley : A.D. 1904.

and if required by the Tyne Improvement Commissioners constructed of such strength and with foundations at such depth at the lower or southern end thereof as to allow without damage thereto of such dredging in or deepening of the Ouseburn immediately to the south of the said culvert as may be necessary for providing there a depth of fifteen feet of water at high-water ordinary spring tides in the Ouseburn.

25.—(1) The Corporation shall carry the said Work No. 3 over Rosedale Street by a bridge having a clear headway of not less than sixteen feet and a span of not less than sixteen feet and the roadway of Rosedale Street beneath the bridge shall not have a less width than twelve feet between the kerbs. Access to Messrs. J. H. Holmes and Company's premises to be preserved.

(2) The Corporation shall also provide and maintain a proper and convenient means of access by steps from Rosedale Street to the intended new street or Work No. 3 on the south side thereof.

26. Subject to the provisions of this Act the Corporation may when they have constructed the culvert authorised by this Part of this Act and in connexion with the construction of the new streets authorised by this Part of this Act fill up to the level of the said new streets that portion of the valley of the Ouseburn which is within the limits of land to be acquired shown upon the deposited plans but nothing herein contained shall authorise the Corporation to stop the flow of water in the Ouseburn. Power to fill up portion of Ouseburn Valley.

27. In constructing the works by this Part of this Act authorised the Corporation may deviate from the lines thereof as shown upon the deposited plans to the extent of the limits of deviation and from the levels thereof as shown upon the deposited sections to such extent as they may think proper Provided that no such deviation shall be made so as to cause the gradient of the said new streets or any of them to be steeper than one in twenty. Deviation.

28. The Corporation shall construct the works by this Part of this Act authorised in such manner as not to prevent access to the North Eastern Railway Company's Ouseburn viaduct and to the piers and foundations thereof and as not to damage such viaduct or any of the railways or works of the company. For protection of North Eastern Railway Company as to works under this Part of Act.

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For pro-
tection of
Messrs. J.
H. Holmes
and Com-
pany.

29.—(1) The Corporation shall so carry out the works under this Part of this Act that—

(A) On the south side of the property of Messrs. J. H. Holmes and Company coloured blue and yellow on the plan signed in duplicate by James Tynte Agg-Gardner the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan one copy has been deposited in the Private Bill Office of the House of Commons and the other has been deposited in the Parliament Office of the House of Lords) no alteration of the level of the ground as existing at the passing of this Act shall be made to the westward of the point marked A on the said plan :

(B) On the east side of the said property the line of obstruction of light to the said property shall be within the angle of 45 degrees with the horizontal drawn at right angles to the eastern boundary of the said property at the level of the ground as existing at the passing of this Act :

(C) On the north side of the said property so much of the road as abuts on the said property shall be maintained at its present level and at not less than its present width.

(2) In addition to any compensation to which the said J. H. Holmes and Company may independently of the provisions of this section be entitled under the provisions of the Lands Clauses Acts in consequence of the execution by the Corporation of the powers conferred upon them by this Part of this Act if an injury or damage in respect of which the said J. H. Holmes and Company may not be entitled to compensation as aforesaid shall at any time be caused to the lands buildings or property of the said J. H. Holmes and Company by the execution by the Corporation of any of the said powers the said J. H. Holmes and Company shall be entitled to claim compensation for such injury or damage other than interference with or obstruction to access of light notwithstanding that such injury or damage might not have been actionable if caused without this Act having been passed and the amount of such last-mentioned compensation shall be ascertained by arbitration under the Arbitration Act 1889.

(3) Nothing in this section shall derogate from the rights of the said J. H. Holmes and Company or other the owners thereof to claim compensation under the Lands Clauses Acts if the Corporation serve notice to treat in respect of the properties numbered 114 116 and 117 on the deposited plans or any of them. A.D. 1904. —

PART V.

QUAYS.

30. The powers and rights of the Corporation existing at the passing of this Act in respect of their quays and the jurisdiction of the Corporation and the quay-master and other officers of the Corporation shall extend and apply to and within the area herein-after described which area shall be deemed to be the existing quays (that is to say) :— Defining limits of existing quays.

The area situate between the existing quay wall and a line drawn from the western end of the southern parapet of the New Glasshouse Bridge along the southern side of Tyne Street and Back City Road behind Crawhall Terrace thence along the backs of the premises fronting on the southern side of City Road to Wideopen thence along the northern side of the roadway and footway known as Quay Side to a point opposite Broadchare 40 feet or thereabouts south of the line of buildings on the north of the roadway known as Quay Side and thence on the south side of the Quay Side along a line parallel to or nearly parallel to and 40 feet or thereabouts distant from such before-mentioned line of buildings to the Newcastle Swing Bridge and thence round the eastern northern and western boundary of the Fish Market to the south-westernmost corner of that market.

31. Subject to the provisions of this Act the Corporation may make and maintain in the lines shown on the deposited plans and according to the levels shown on the deposited sections the works herein-after described together with approaches roads sidings rails warehouses sheds buildings machinery (including cranes and elevators) works and plant connected therewith or convenient therefor (that is to say) :— Power to make new quay and works.

Work No. 1.—A new quay consisting of a quay wall commencing on the eastern side of the Ouseburn at or near the eastern end of Glasshouse Bridge and terminating at a

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point on the foreshore on the northern side of the River Tyne near the south-easternmost corner of the premises known as the Tyne manure works and comprising the area included within a line drawn parallel to or nearly parallel to and at a distance of 200 feet or thereabouts northward from the existing river wall:

Work No. 2.—A high-level bridge with approaches across the Ouseburn immediately to the southward of the existing New Glasshouse Bridge:

Work No. 3.—A low-level bridge with approaches over the Ouseburn immediately to the southward of the bridge herein-before described as Work No. 2.

Power to
dredge.

32. The Corporation for the purposes of constructing and maintaining the quays of the Corporation may dredge the bed banks shores and channels of the River Tyne so far as the same shall be consented to in writing by the Tyne Improvement Commissioners.

Stopping up
of roads.

33. When and so soon as the diversion and widening of the western approach from the Quayside to the Milk Market described in and authorised by the Act of 1899 shall have been completed all public rights of way or passage over the roadways known as the Quayside and Horatio Street from the point of commencement of the said diversion to the point where Horatio Street joins the New Glasshouse Bridge shall be and the same are hereby extinguished for all purposes except for the purposes of user of the same by the Corporation and their licencees as part of the quays of the Corporation. Provided nevertheless that the owners and occupiers of property in the said roadways or either of them shall have the same free and uninterrupted right of access and way to and from and over the said roadways or either of them from and to their said properties respectively as they now have. Provided also that the Corporation shall provide maintain and keep open for foot passengers along the northern side of the said roadways a footpath of a width of not less than three feet six inches and raised not less than four inches above the said roadways.

Limits of
deviation.

34. In constructing the works authorised by this Part of this Act the Corporation may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the said works as shown on the said

sections to any extent not exceeding ten feet. Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade : A.D. 1904.

Provided also that no such deviation shall be made so as without the consent of the Tyne Improvement Commissioners either to bring any part of the new quay beyond the quay line prescribed by the said commissioners or to cause the wall of the new quay facing the river to have any projection from the uniform straight or even line thereof except fenders of timber for the protection of vessels lying thereat.

35. Without the consent in writing of the Tyne Improvement Commissioners the Corporation shall not place or have any works or things except temporary works approved as herein-after provided on any part of the foreshore or bed of the River Tyne within the limits of deviation shown on the deposited plans which lies beyond or to the south of the quay line prescribed by the said commissioners. No works or things beyond commissioners' quay line without consent.

36. The Corporation shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade or the Tyne Improvement Commissioners or either of them from time to time require or approve. Lights on works during construction.

If the Corporation fail to comply in any respect with the provisions of this section they shall for each day on which they so fail be liable to a penalty not exceeding twenty pounds.

37. The Corporation shall at the outer extremity of their works beyond high water exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct. Permanent lights on works.

If the Corporation fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

38. Any work constructed by the Corporation under the powers of this Act on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where Works below high-water mark not to be commenced

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—
without con-
sent of Board
of Trade.

and so far up the same as the tide flows and reflows shall be constructed according to such plan and under such restrictions and regulations as the Board of Trade may approve such approval being signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like approval. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of
works by
Board of
Trade.

39. If at any time the Board of Trade deem it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Corporation on in over through or across tidal lands or tidal waters or of the intended site of any such work the Corporation shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily.

Abatement
of work
abandoned
or decayed.

40. If a work constructed by the Corporation under the powers of this Act on in over through or across tidal lands or tidal waters is abandoned or suffered to fall into decay the Board of Trade or the Tyne Improvement Commissioners may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Corporation and the amount of such expense shall if incurred by the Board of Trade be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily and if incurred by the Tyne Improvement Commissioners be recoverable summarily.

Provision
against dan-
ger to navi-
gation.

41. In case of injury to or destruction or decay of the works or any part thereof the Corporation shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Tyne Improvement Commissioners and shall apply to those commissioners for directions as to the means to be taken and the Corporation shall be liable to a penalty not

exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken. A.D. 1904.

42. The Corporation shall without making any charge therefor either continue to provide at the existing quay the boathouse and office accommodation at present occupied by the Commissioners of His Majesty's Customs or provide in lieu of such office and boathouse accommodation such other suitable accommodation as may be required by the said commissioners and at all times maintain such office and boathouse accommodation in proper repair and condition and also if and when required by the said commissioners provide and maintain at the new quay and at any future extension or extensions of the existing quays suitable office and boathouse accommodation and all such accommodation provided under this section shall be in accordance with the requirements of and subject to the approval of the said commissioners. Accommodation for Customs officers.

43. The new quay and the works connected therewith respectively and all lands acquired or appropriated by the Corporation for the purposes of this Part of this Act shall form part of the quays of the Corporation. Quay works &c. to be and form part of quays of Corporation.

44. The Corporation may provide erect fit up and equip on the quays of the Corporation or on any of the lands adjoining the said quays which belong to the Corporation or shall be acquired by them under the powers of this Act warehouses depôts cranes elevators buildings sheds sidings rails machinery electric and other apparatus for motive power and other works erections conveniences appliances and facilities for the reception security accommodation transit passage and interchange of goods merchandise and other traffic and for the more convenient use of the quays of the Corporation and may hold work and use and let or otherwise dispose of and make and recover reasonable charges for the use of the same and the Corporation may enter into and fulfil contracts and agreements for or in relation to the exercise of any of such powers. Subsidiary works and conveniences in connexion with quays.

45. Subject to the provisions of this Act the Corporation may demand take and recover for and in relation to the use of the new quay the same tolls rates dues and charges as they may for the time being be authorised to demand and take in respect of the existing quays. Dues &c.

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Exclusive
rights of
loading and
discharging
vessels and
handling
cargo.

46. The Corporation shall have the exclusive right to load and discharge all vessels at the new quay and to perform all services in respect of shipping unshipping transshipping stowing unstowing landing relanding housing unhousing handling weighing cooping packing cording tying marking numbering labelling lettering sorting lotting tareing filling sewing bagging sampling piling unpling watching loading unloading trucking untrucking hauling protecting delivering and repairing cargo and for preparing and furnishing certificates of weights or contents and for any other service with respect to cargo shipped or unshipped or warehoused or deposited at the new quay and the Corporation may provide all such trucks plant gear machinery and appliances and labour as may be necessary to effect the purposes aforesaid The Corporation may make reasonable charges for such loading and discharging and for performing such services.

Quay dues.

47. The Corporation may levy on all vessels using the quays of the Corporation for discharging or loading cargo quay dues not exceeding the following sums per ton on the net registered tonnage of such vessels (that is to say):—

Per ton.

For every vessel trading between the quays of the Corporation and any port in the United Kingdom - - - - - 1*d.*

For every vessel trading between the quays of the Corporation and any port in Europe between the North Cape and Gibraltar including the Baltic but excluding the United Kingdom - - - - - 2*d.*

For every vessel trading between the quays of the Corporation and any port other than those above mentioned - - - - - 4*d.*

and may in respect of any vessel discharging or loading a part only of the cargo reduce the amount of quay dues payable in respect of such vessel in proportion to the amount of cargo loaded or discharged by such vessel while moored at the quays of the Corporation but such quay dues shall not be payable both in respect of loading and discharging in the case of any vessel which shall be discharged and loaded without leaving the quay Provided always that if a vessel leaves the quay before her discharging and loading has been completed and without lying up or trading in the River Tyne or leaving the river returns to the quay for the purpose of completing such discharging and

loading such vessel shall not be deemed to have left the quay within the meaning of this section. A.D. 1904.

48. Notwithstanding anything contained in the former Acts the Corporation may levy and recover package dues upon the goods articles and things mentioned in the Third Schedule to this Act not exceeding the respective amounts specified in that schedule in lieu of the package dues which they are authorised to levy and recover for the same goods articles and things under the provisions of the former Acts and the Corporation may levy and recover upon the new quay the package dues mentioned in the schedule to the Act of 1877 as altered by this Act:

Provided always that in levying any package dues whether under the powers of this Act or the Act of 1877 as amended by this Act fractional parts of a ton or other quantity or number shall be charged proportionately but no such fractional part shall be charged less than threepence in the case of any less weight quantity or number than is specified in the said schedules and in the case of any greater weight quantity or number than is specified in the said schedules containing fractional parts of a ton or other quantity or number any fractional parts of one penny shall be charged as one penny.

49. The Corporation may set apart and appropriate to the exclusive use of any particular trade traffic or vessel any berth at the quays of the Corporation and any sheds quay space or other facilities and in addition to the other rates they are authorised to demand and take may for such exclusive appropriation or use demand and take such reasonable charges and make such regulations as they from time to time think fit No person or vessel shall make use of any berth so set apart or appropriated without the consent of the Corporation under the hand of their quay-master and any person knowingly offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a further penalty not exceeding ten pounds for every day during any part of which such offence shall continue after notice not to use such berth and the quay-master may order such person and any such vessel to be removed and the provisions of section 58 of the Harbours Docks and Piers Clauses Act 1847 shall extend and apply mutatis mutandis to and in relation to any such vessel.

50. The Corporation may enter into and fulfil agreements with the owners of vessels trading at stated times or intervals to

Package
dues.

Power to set
apart and
appropriate
berths &c.

Agreements
for payment
of dues on

A.D. 1904. or from the port of Newcastle-upon-Tyne or carrying to or from
special the said port a stated amount of cargo for the payment of any
scales. dues leviable by the Corporation on special scales lower than those
applicable to other vessels :

Provided that any such special scale shall be on the same
terms equally to all persons in like circumstances.

As to agree- **51.** Nothing in this Act contained shall alter or affect the
ment with agreement scheduled to the North Eastern Railway Company's
North East- Newcastle &c. Branches Act 1863 but the said agreement may be
ern Railway varied by agreement between the Corporation and the company.
Company.

Tolls &c. for **52.** The Corporation may levy and recover such reasonable
services on tolls rates and charges as they may from time to time appoint
quay. for all or any services performed by them in respect of all or
any traffic passing to from over or along any part of the quays
of the Corporation or the works warehouses and premises of the
Corporation.

Power to **53.** It shall be lawful for the Corporation to confer exemptions
compound from and compound for remit or make rebates from any of the
for rates rates dues or charges which they are authorised to levy or make
dues or on or in respect of the quays of the Corporation Provided that
charges. every such composition remission or rebate shall be made on the
same terms equally to all persons in respect of the same description
of vessel or the same description of goods.

Charges for **54.** The Corporation in respect of any goods articles and
goods left things which shall remain upon any part of the quays of the
on quays. Corporation for a longer period than shall be allowed by the
byelaws or regulations of the Corporation for the time being in
force with respect to such part of such quays may charge for
every twenty-four hours or part thereof during which any such
goods articles and things shall so remain without the consent of
the quay-master a sum not exceeding the amount leviable or
levied as package dues in respect of such goods articles and things
and any sum so chargeable may be recovered from the owner of
such goods articles and things in like manner as package dues
are recoverable.

Issue of **55.** The Corporation may if they think fit at the request of
transferable any person warehousing or depositing goods in any warehouse or
warrants or premises of the Corporation or entitled to any goods so warehoused
certificates. or deposited issue and deliver to him a certificate that such goods

have been so warehoused or deposited or a warrant for the delivery of such goods or of any part thereof and such goods or such part thereof shall be specified in such warrant. A.D. 1904.

56. Every such certificate or warrant shall be deemed to be a document of title to the goods specified therein and shall be transferable by endorsement and any holder of such certificate or warrant whether the person named therein or the endorsee or if more than one the last endorsee thereof shall have the same right to the possession and property of such goods as if they were deposited in his own warehouse. Effect of certificate or warrant.

57. Every such certificate or warrant shall state on the face thereof the effect of the preceding section and that it is issued under the powers of this Act. Certificate or warrant to state effect of preceding enactment.

58. No goods specified in any certificate or warrant shall be delivered by the Corporation except upon delivery to and cancellation by the Corporation or their officer authorised in that behalf of such certificate or warrant and then such goods shall be delivered only to the person named in the warrant or if the same be endorsed to the last endorsee thereof. Goods not to be delivered until delivery and cancellation of certificate.

59. No warrant for delivery of any goods shall be issued or delivered by the Corporation except upon delivery to and cancellation by them of the certificate if any issued in respect of such goods. Provided that if the warrant be for the delivery of part only of the goods specified in the certificate the Corporation shall issue to the person so delivering up the certificate a new certificate with respect to the goods not specified in the warrant. Warrant not to be issued till certificate given up.

60. If any such certificate or warrant be lost or destroyed then upon proof thereof to the satisfaction of the Corporation or their authorised officer and on receiving indemnity to the satisfaction of the Corporation or their authorised officer a new certificate or warrant shall be given in substitution for such last-mentioned certificate or warrant to the person entitled to the goods therein referred to. Issue of new certificate or warrant on loss or destruction of original.

61. No such certificate or warrant shall be given under this Act until all claims and liens for freight and all other claims or liens whatsoever to which the goods were liable whilst the same were on board any vessel and before the warehousing or depositing thereof and of which the Corporation have had notice in writing Certificate or warrant not to be given till freight rates &c. paid.

A.D. 1904. and all rates dues rents charges and expenses payable to the Corporation in respect of such goods are paid or discharged.

Corporation bound by warrants and certificates under this Act.

62. All certificates or warrants issued under this Act and signed and issued by any officer duly authorised in that behalf shall be effectual and binding on the Corporation and all other persons interested without any seal.

Corporation may charge for certificate or warrant.

63. The Corporation may charge for each certificate or warrant any sum not exceeding two shillings.

Power to enter into agreements with North Eastern Railway Company.

64. The Corporation on the one hand and the North Eastern Railway Company on the other hand may enter into and fulfil agreements and arrangements with respect to the following purposes or any of them (that is to say):—

The use working management and maintenance of any of the rails or sidings laid down by the Corporation on the quays of the Corporation ;

The interchange collection transmission handling and delivery of traffic upon or coming from or destined for the quays of the Corporation and the undertaking of the North Eastern Railway Company ; .

The supply and maintenance under any such agreement of engines stock and plant necessary for the purposes of such agreement ;

The fixing collection payment appropriation apportionment and distribution of tolls rates and charges income and profits arising directly or indirectly from the undertakings of the contracting bodies or either of them.

Application of provisions of former Acts &c. to quays of Corporation.

65. Subject to the provisions of this Act the provisions of the former Acts and the byelaws and regulations for the time being in force in respect of the existing quays shall extend and apply to the quays of the Corporation and the Corporation shall have and may exercise in respect of the quays of the Corporation all the rights powers and privileges and be subject to the duties and obligations of the former Acts as amended by this Act so far as the same relate to quays.

Saving jurisdiction of harbour-master.

66.—(1) Nothing contained in this Act or any of the former Acts or in any byelaws or regulations at any time made by the Corporation in respect of the quays of the Corporation or any powers conferred on the quay-master by any of such Acts byelaws or regulations shall interfere with the powers of

the harbour-master acting under the authority of the Tyne Improvement Commissioners or otherwise and such powers may be exercised over all vessels in the river in the same manner and to the same extent as if such Acts byelaws and regulations had not been passed or made. A.D. 1904.

(2) The Corporation shall indemnify the Tyne Improvement Commissioners against the consequences of any Act order or direction of the quay-master whilst acting as a harbour-master under this Act or any of the former Acts and of any other person acting under any byelaws or regulations made by the Corporation in respect of the quays of the Corporation.

PART VI.

GENERAL PROVISIONS AS TO TRAMWAYS AND WORKS.

67. Subject to the provisions of this Act the Corporation may within the limits of deviation shown on the deposited plans make and maintain all such approaches retaining walls piers abutments embankments girders cantilevers bridges arches sewers drains goits culverts excavations and other works and conveniences connected with the tramways and the other works by this Act authorised as they may deem necessary. Power to make general works.

68. Section 13 (Power to alter pipes &c.) of the Improvement Act of 1882 shall so far as the same is applicable and is not inconsistent with the provisions of this Act extend and apply mutatis mutandis to and in relation to the constructing and maintaining of the tramways and works by this Act authorised. Incorporation of section 13 of Improvement Act of 1882.

69. The Corporation may during the execution and for the purposes of any works by this Act authorised but as to any tramways in any district without the city only with the consent of the local and road authority of such district from time to time close any street for public traffic and may for any reasonable time prevent all persons from passing along and using the same other than foot-passengers bonâ fide going to or returning from any house in the street or the officers or servants of any gas or water company or company supplying electrical energy requiring to pass along enter upon or break up the same for the purposes of their undertaking The Corporation shall provide reasonable access for foot-passengers bonâ fide going to or returning from such houses. Temporary stoppage of streets.

A.D. 1904.

Power to
make subsi-
diary works.

70.—(1) Subject to the provisions of this Act and within the limits defined on the deposited plans the Corporation in connexion with the works by this Act authorised or any of them and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the said works or any of them and may raise lower or alter any vault arch cellar or area under or adjoining any roadway or footway and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said works or any of them or of crossing under or over the same or any of them or otherwise Provided always that the parties interested in any lands or houses injuriously affected by any such interference or alteration shall be entitled to full compensation for all damage sustained by them or any of them.

(2) The power given by this section shall not be exercised in any street without the city except with the consent of the local or road authority having jurisdiction over such street.

For protec-
tion of works
of New-
castle-upon
Tyne Elec-
tric Supply
Company
Limited.

71.—(1) Before executing any works under the powers conferred upon them by Parts III. IV. and V. of this Act whereby any electric mains wires or other works of the Newcastle-upon-Tyne Electric Supply Company Limited (in this section called "the company") may be affected or the access thereto interfered with or the supply of electric current in or through the same may be impeded the Corporation shall give to the company not less than twenty-eight days' notice in writing of their intention to execute such works accompanied by a plan and section of the proposed works If it shall appear to the company that the execution of such works would endanger any such main wire or other work or interfere with the access thereto or impede the supply of electric current in or through the same the company may give notice to the Corporation requiring that the position of the said electric main wire or other work shall be altered in such manner as the company may consider necessary and any difference as to the necessity of such alteration or the manner of carrying out the alteration shall be settled by an engineer to be appointed by the President of the Institute of Electrical Engineers and the expense of the reference shall be borne and paid as the said engineer shall order and all alterations under this section shall be made with as little detriment and inconvenience to the company and the consumers of the electric energy supplied by the company

as the circumstances will admit and under the superintendence of the engineer of the company if he shall think fit to attend after receiving not less than seven days notice for that purpose which the Corporation are hereby required to give. A.D. 1904,

(2) The Corporation shall not remove or displace any of the electric mains wires or other works of the company or do anything whereby the access to any such works may be interfered with or the supply of electric current in or through the same may be impeded without the consent in writing of the company or in any other manner than the company shall approve until equally good sufficient and accessible mains wires or other works necessary or proper for continuing the supply of electric current as sufficiently as the same was supplied by the electric mains wires or other works proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and ready for use and to the satisfaction of the company or in case of disagreement between the company and the Corporation as an engineer appointed by the President of the Institute of Electrical Engineers shall direct.

(3) Wherever by virtue of this Act any public rights of way over any existing road or footway in which any electric mains wires or other works of the company shall be placed shall be extinguished the Corporation may and if required by the company shall remove any of such mains wires and works which shall be required for the supply of electric current to property not acquired by the Corporation under the powers of this Act to and relay the same in the road or footway (if any) intended to be substituted for such existing road or footway or in such other position as may be required by the company or if required by the company shall provide in such substituted road or other position similar works equally suitable and accessible in lieu thereof under the superintendence and to the reasonable satisfaction of the engineer of the company and in such a manner as not to cause without the consent in writing of the company which consent shall not be unreasonably withheld any interruption in the continual supply of electric energy through or by means of such electric mains wires and works.

(4) No such electric mains wires or other works shall be made and laid down contrary to the regulations of any Act of Parliament relating to the making and laying down of such mains wires or other works of the company.

A.D. 1904.

(5) The Corporation shall make good all damage done by them to any property belonging to or controlled by the company and shall make full compensation to all parties for any loss cost damage and expense which they may sustain and be put to by reason of any interference with such property or the access thereto or with the property of any person supplied with electrical energy by the company and shall also bear and pay to the company the additional cost (if any) of the maintenance by the company of all such new altered or substituted electric mains wires and other works and shall also bear and pay to the company the cost to the company of any electric mains wires and other works which may be rendered useless or unnecessary by reason of the exercise of the powers by this Act conferred upon the Corporation.

(6) If any difference shall arise between the company and the Corporation touching anything herein-before contained in this section the settlement of which is not by this section already provided for such difference shall be settled by an engineer to be appointed by the President of the Institute of Electrical Engineers.

(7) If by reason of any such operations as aforesaid the Corporation without the consent in writing of the company interrupt the supply of electric current in or through any main wire or other work of the company or interfere with the access thereto they shall be liable to a penalty not exceeding twenty pounds for every day upon which such supply shall be so interrupted or such access shall be so interfered with.

(8) If the company shall desire to execute the works connected with any alteration of position removal or displacement of their electric mains wires or other works under subsections (1) (2) and (3) of this section and shall give notice in writing thereof to the Corporation before they commence the said works the company may themselves carry out the works and all expenses properly incurred by them in connexion therewith shall be repaid to them by the Corporation and be recoverable summarily as a civil debt.

(9) Subject to the provisions herein-before contained in this section the provisions of section 16 of the Newcastle-upon-Tyne Electric Lighting Order 1893 shall extend and apply to all mains wires electric lines and other works of the Corporation and the company respectively laid in or under any street or place under the powers contained in this Act.

72. Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply instead of the provisions of section 30 of the Tramways Act 1870 to any such alteration.

A.D. 1904.

Alteration of
telegraph
lines of
Postmaster-
General.

73. For the protection of the Newcastle and Gateshead Water Company and the Newcastle-upon-Tyne and Gateshead Gas Company (in this section called "the two companies") the following provisions shall have effect unless otherwise agreed between the Corporation and the company affected (that is to say) :—

For protec-
tion of New-
castle and
Gateshead
Water Com-
pany and
Newcastle-
upon-Tyne
and Gates-
head Gas
Company.

(1) In this section "apparatus" means and includes all or any mains pipes valves hydrants syphons plugs and other appliances belonging to the two companies respectively and "authorised work" means and includes any work authorised by this Act except tramways and works in connexion therewith :

(2) The Corporation may from time to time where and as far as it is necessary in the execution of any authorised work alter the position of any apparatus :

(3) Before commencing to execute any authorised work in any road in which any apparatus is laid the Corporation shall whether they contemplate altering the position of any such apparatus or not give seven days notice to the company to whom such apparatus belongs of their intention to execute such work and shall at the same time deliver a plan and section of the proposed work If it should appear to such company that the execution of such work as proposed would endanger any such apparatus or interfere with or impede the supply of water or gas such company may give notice to the Corporation to lower or otherwise alter the position of such apparatus in such manner as may be considered necessary and any difference as to the necessity of any such lowering or alteration shall be settled by arbitration in manner in this section provided for the settlement of differences between the Corporation and the two companies and all alterations to be made under this section shall be made with as little detriment and inconvenience to the company to whom such

A.D. 1904.

apparatus belongs or to the inhabitants of the district as the circumstances will admit and under the superintendence of the engineer of such company if he think fit to attend after receiving not less than forty-eight hours notice for that purpose which notice the Corporation are hereby required to give :

- (4) The Corporation in executing any authorised work shall not remove or displace any apparatus or do anything to impede the passage of water or gas into or through any apparatus without the consent of the company to whom it belongs or in any other manner than such company shall approve until good and sufficient apparatus and other works necessary or proper for continuing the supply of water or gas as sufficiently as the same was supplied by the apparatus proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and ready for use and to the satisfaction of the engineer of such company or in case of disagreement between such engineer and the Corporation as an engineer appointed by the Board of Trade shall direct :
- (5) Wherever by virtue of this Act any public rights of way over any existing road or footway in which any apparatus of either of the two companies shall be placed shall be extinguished the Corporation shall if required by the company to whom such apparatus shall belong and so far as such apparatus shall be requisite for the supply of gas or water to property not acquired by the Corporation under the powers of this Act remove such apparatus to and relay the same in the road or footway (if any) intended to be substituted for such existing road or footway or in such other position as may be reasonably required by the company to whom such apparatus may belong or shall provide in such substituted road or other position similar apparatus equally suitable in lieu thereof under the superintendence and to the reasonable satisfaction of the engineer of the company to whom such apparatus may belong and in such a manner as to prevent for a longer time than is reasonably practicable any interruption in the continuous supply of water or gas

as the case may be through or by means of such apparatus : A.D. 1904.

- (6) Wherever the Corporation shall in reducing the width of the footway of any street or road under the powers of this Act add to the roadway any portion of any footway in which there shall be placed any apparatus belonging to either of the two companies the company to whom such apparatus shall belong may at the reasonable cost of the Corporation lower or alter the position of such apparatus to such depth below the surface of the roadway not exceeding 2 feet 6 inches measured from the upper side of the apparatus as the company may deem necessary :
- (7) The Corporation shall not lay down any such apparatus contrary to the regulations of any Act of Parliament relating to the two companies or either of them :
- (8) The Corporation in executing any authorised work shall make good all damage done by them to property belonging to either of the two companies and shall make full compensation to all parties for any loss or damage which they may sustain by reason of any interference with such property or with the private service pipes of any person supplied by such company with water or gas :
- (9) If by any authorised work the Corporation interrupt for a longer time than is reasonably necessary the supply of water or gas in or through any apparatus they shall be liable to a penalty not exceeding twenty pounds for every day upon which such supply shall be so interrupted :
- (10) If any difference arises between the Corporation and either of the two companies with respect to any interference or control exercised or claimed to be exercised by them in relation to the execution of any authorised work by the Corporation or in relation to anything to be done or not to be done or any money to be paid under this section such difference shall be determined by arbitration under and according to the provisions of the Arbitration Act 1889 by an engineer to be appointed by the Board of Trade on the application of either of the parties in difference after notice thereof in writing to the other of them.

A.D. 1904.

For protec-
tion of Tyne
Improve-
ment Com-
missioners.

74. The following provisions for the protection of the Tyne Improvement Commissioners (in this section referred to as "the commissioners") shall unless otherwise agreed in writing between the Corporation and the commissioners have effect in relation to works authorised by the section of this Act the marginal note whereof is "Power to make new quay and works":—

- (1) If and when the commissioners so desire they may at their own expense convert the low-level bridge by this Act authorised into an opening bridge which is to be opened and shut by and at the expense of such commissioners :
- (2) If and when the commissioners so require the Corporation shall at their own expense convert the high-level bridge by this Act authorised into an opening bridge which is to be opened and shut by and at the expense of the Corporation at times to be settled in the event of dispute by the Board of Trade :
- (3) The foundations wingwalls and piers of the said bridges shall be constructed of such strength and at such depth as to allow without damage to such foundations wingwalls or piers of dredging the Ouseburn to a depth of five feet below the level of low water at ordinary spring tides :
- (4) The foundations piers and wingwalls of the low-level bridge shall be so constructed that they can afterwards be added to in a way to make them suitable for an opening bridge any question as to such construction being settled in the event of difference of opinion between the Corporation and the commissioners by the Board of Trade :
- (5) The clear span of the proposed bridges shall be not less than fifty-five feet measured on the square :
- (6) The new quay shall be so constructed as to admit of the ground or bed of the river for fifty feet in front of such quay being removed from time to time by dredging or otherwise to a depth at such quay of not less than twelve feet below low water at ordinary spring tides and of not less than twenty feet below low water as aforesaid at a distance of fifty feet from such quay :
- (7) The Corporation shall before commencing any work or works temporary or permanent affecting any part of

A.D. 1904.
—

the tidal area of the River Tyne or of the Ouseburn submit to the commissioners for their approval and deliver to the commissioners for their use plans and sections thereof in duplicate and unless the commissioners fail to signify in writing their approval or disapproval of such plans and sections within two months after the receipt thereof the said works shall not be commenced until the commissioners shall have expressed in writing their approval of such plans and sections or the same shall have been approved by a single arbitrator to be appointed in case of difference by the Board of Trade :

- (8) All the aforesaid works shall be carried out by the Corporation to the reasonable satisfaction of the commissioners and so as in no way to obstruct impede or interfere with the free and uninterrupted and safe navigation of the River Tyne or of the Ouseburn :
- (9) All material excavated from the bed or foreshore of the river in the construction of the works shall be carefully removed by and at the expense of the Corporation and shall not be allowed to fall or to be washed into the river :
- (10) If any difference shall arise between the Corporation and the commissioners touching anything herein-before contained in this section or anything to be done or not to be done under the preceding part of this section such difference shall be settled by a single arbitrator to be appointed (unless otherwise agreed on) by the Board of Trade on the application of either party :
- (11) The Corporation shall allow the commissioners' engineer or his authorised representatives to inspect or survey all or any of the aforesaid works while in course of construction and shall give all reasonable facilities for so doing :
- (12) All responsibility in connexion with the aforesaid works whether of construction or maintenance (including dredging both temporary or permanent) and for damage occasioned thereby shall as between the commissioners and the Corporation be and remain with the Corporation :

A.D. 1904.

(13) If the commissioners shall think it desirable in consequence of the making or the use of Work No. 1 to take up and shall take up the existing moorings of the commissioners in front of or near to the site of the said work the Corporation shall on demand pay to the commissioners the cost incurred by them in taking up such moorings and in the event of the commissioners afterwards relaying the same moorings or laying down similar moorings in lieu thereof elsewhere in the river the Corporation shall also pay to the commissioners on demand the cost incurred by them in such relaying or laying down of moorings.

PART VII.

LANDS.

Power to
take lands.

75. Subject to the provisions of this Act the Corporation may enter on take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference except the lands delineated on the deposited plans and described under the head of Ouseburn Valley works in the deposited book of reference and numbered 24 71 118 119 120 121 122 and 123 and so much of the public street numbered 87 as is adjacent to and co-terminous with the lands and property of Messieurs J. H. Holmes and Company.

For protec-
tion of North
Eastern Rail-
way Com-
pany as to
lands.

76. The Corporation shall not except with the previous consent of the North Eastern Railway Company under their common seal purchase or acquire under the powers of this Act any of the lands or property of that company.

Incorporation
of sec-
tions of Acts
of 1892 1899
and 1902.

77. The following sections of the following Acts (that is to say) :—

Of the Act of 1892—

Section 109 (Correction of errors omissions &c.);

Section 115 (Power to acquire additional lands by agreement);

Section 116 (Consideration for such acquisition);

Section 118 (Power to take easements &c. by agreement);

Section 119 (Corporation may use their own lands for purposes of Act);

Section 121. (Power to retain sell &c. lands) except the proviso ; and A.D. 1904.

Section 123 (As to consent of Local Government Board to sale &c. of lands) :

Of the Act of 1899—

Section 59 (Corporation empowered or may be required to underpin or otherwise strengthen houses near works) ;

Section 61 (Elevation of buildings erected on front land to be subject to approval of Corporation) ;

Section 62 (Exemption of Government property) :

Of the Act of 1902—

Section 31 (Application of moneys from sale of lands) ;

Section 32 (Value of land appropriated to other than purposes for which it was acquired to be credited) ;

so far as the same are applicable and not inconsistent with the provisions of this Act shall extend and apply mutatis mutandis to and in relation to the lands to be acquired and the works to be constructed under the powers of this Act.

78. The powers of the Corporation for the compulsory purchase of lands shall not be exercised after the expiration of five years from the passing of this Act. Limitation of time for compulsory purchase of lands.

79. The Corporation may discontinue and stop up any roads or footways in or over any lands acquired by them under the powers of this Act and described on the deposited plans as intended to be stopped up and thereupon all rights of way over such roads or footways shall be extinguished and the soil shall vest in the Corporation if and so far as they are the owners of the adjoining land on both sides. Provided that the Corporation shall make full compensation to all parties interested in any private right of way extinguished by this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. Power to stop up roads or footways.

80. Where any street or part of any street or any ground abutting on any street and dedicated to public use becomes in consequence of the execution by the Corporation of any works Streets dis-used vested in Corporation.

A.D. 1904. shown on the deposited plans and authorised by this Act no longer required for public use or for approach to any property adjoining the same the same is hereby vested in the Corporation freed and discharged from the public use thereof Provided that if any land be injuriously affected by such street or ground being so vested in the Corporation they shall make to the owner and occupier of such land compensation therefor.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

81. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Fourth Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are herein-after included in the term “the owner” and the said properties are herein-after referred to as “the scheduled properties”:
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as

“the tribunal”) shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed: A.D. 1904.

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment

A.D. 1904

thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

PART VIII.

SUPERANNUATION.

Title of
officers and
servants to
superannua-
tion allow-
ances.

82. Subject to the provisions of this Act every officer and servant in the service or employment of the Corporation who shall become incapable of discharging the duties of his office with efficiency by reason of permanent infirmity of mind or body or of old age or who shall have attained the age of sixty years and have completed an aggregate service of forty years or who shall have attained the full age of sixty-five years shall be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life out of the Corporation superannuation fund a superannuation allowance according to the scale laid down in this Act.

An officer or servant shall not be entitled to an allowance on the ground of old age unless he has completed the full age of sixty years.

Where an officer or servant has attained the age of sixty-five years and the Corporation is of opinion that it would be expedient in the interests of the public service that he should cease to hold his office or employment it shall be competent for the Corporation to require him to retire upon payment to him of the superannuation allowance to which he may be entitled under this Act.

83. The scale for superannuation allowances shall be as follows (that is to say):—

An officer or servant who has served for ten years shall be entitled to an annual allowance equal to ten-sixtieths of the average amount of his salary or wages during the five years ending on the day which immediately precedes the day on which he ceases to hold his office or employment:

With an addition of one-sixtieth of such average amount for every additional completed year of service until the completion of a period of service of forty years when a maximum allowance of forty-sixtieths shall be granted.

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Scale of
superannua-
tion allow-
ances.

84. Where a person in receipt of a superannuation allowance under this Act is appointed to any office or employment such allowance shall cease to be paid so long as he continues to hold such office or employment if the salary or wages thereof are equal to or in excess of the amount of such allowance if they are not then only so much of such allowance shall be paid so long as he holds such office or employment as will make up the deficiency.

Case of
subsequent
appointment.

Any such person on ceasing to hold such office or employment shall be entitled to revert to and to receive the full amount of his original superannuation allowance.

85. An officer or servant who has not become entitled to a superannuation allowance and who loses his office or employment by reason of a reduction of staff or otherwise ceases to hold his office or employment by reason of bodily injury not occasioned by his own default or of any other cause whatever other than his own misconduct or voluntary resignation shall be entitled to receive out of the Corporation superannuation fund a sum equal to the amount of all his contributions to such fund but if he claims under this section and subsequently obtains a fresh office or employment under the Corporation he shall not be entitled to reckon his service before obtaining such fresh office or employment towards a superannuation allowance under this Act unless upon obtaining such fresh office or employment he pays the amount so received to the fund.

Return of
contributions
and power
to grant gra-
tuities and
superannua-
tion allow-
ances in cer-
tain cases.

In any such case of loss of office or employment as aforesaid the Corporation may also grant to the officer or servant a gratuity payable out of the Corporation superannuation fund not exceeding twice the amount of his salary or wages during the year ending

A.D. 1904. — on the day which immediately precedes the day on which he ceases to hold his office or employment.

Obligation of
officers and
servants to
contribute.

86. Subject to the provisions of this Act every officer and servant in the service or employment of the Corporation shall contribute annually for the purposes of this Act a percentage amount of his salary or wages according to the scale laid down by this Act such amount to be from time to time deducted from the salary or wages payable to him and to be carried to and form part of the Corporation superannuation fund.

Scale of con-
tributions.

87. The percentage amounts to be deducted annually for the purposes of this Act shall be as follows (that is to say) :—

In the case of officers and servants with less than five years service at the passing of this Act or appointed after the passing of this Act two per centum of the salary or wages for each year :

In the case of officers and servants with more than five and less than fifteen years service at the passing of this Act two-and-a-half per centum of the salary or wages for each year :

In the case of officers and servants with more than fifteen years and less than thirty years service at the passing of this Act three per centum of the salary or wages for each year :

In the case of officers and servants with more than thirty years service at the passing of this Act four per centum of the salary or wages for each year.

Corporation
to contribute
to fund.

88.—(1) The Corporation shall at the end of every financial year after the passing of this Act contribute out of the rate or revenue upon which the salary or wages of each officer or servant contributing to the Corporation superannuation fund is or are respectively chargeable a sum equal in amount to the sum which during the same year has been contributed thereto by such officer or servant.

(2) In the event of the moneys standing to the credit of the Corporation superannuation fund being in any year inadequate for the payment to officers or servants of the sums to which they will be entitled under this Act the amount of any deficiency shall be made good out of the city fund.

(3) The amount to be contributed by the Corporation under this section to the Corporation superannuation fund in any year

after the expiration of ten years from the passing of this Act shall not exceed a sum equivalent to four per centum of the total amount of the salaries and wages of the officers and servants contributing to that fund in that year. A.D. 1904.

89. At the end of each financial year the surplus of the annual income of the Corporation superannuation fund above the expenditure thereout shall be invested in statutory securities and the income thereof paid into that fund. Investment
of surplus of
fund.

90.—(1) A copy of the provisions of this Part of this Act shall be sent or delivered to each officer or servant in the service or employment of the Corporation as soon as may be after the passing of this Act and shall be sent or delivered to every officer or servant who may enter the service or employment of the Corporation subsequently to the passing of this Act as soon as may be after he shall have entered such service or employment. Provisions of
Act not to be
compulsory.

(2) Any officer or servant in the service or employment of the Corporation may at any time within three months after a copy of the provisions of this Part of this Act shall have been sent or delivered to him as herein-before provided signify in writing to the Corporation his intention not to avail himself of the provisions of this Part of this Act and in that event it shall not be obligatory on him notwithstanding anything in this Act contained to make any contributions or submit to any deduction from his salary or wages under this Act nor shall he be entitled to receive any superannuation allowance gratuity or other benefit under this Part of this Act.

91. The Corporation may if they think fit grant a gratuity to the widow or family of any officer or servant who may die in the service and has not received a superannuation allowance but not exceeding the amount contributed by such officer or servant to the Corporation superannuation fund. Gratuities.

92. In this Part of this Act the expression "officer" or "servant" shall mean an officer or servant in the permanent and exclusive service of the Corporation and in the receipt of a salary or wages and shall for the purposes of this Part of this Act include the medical officer of health the clerk to the city justices and the officers and servants in the service of the city justices but this Part of this Act shall not apply to an officer or As to ex-
pression
"officer" or
"servant."

A.D. 1904. servant who shall be entitled to superannuation under the Police Act 1890 or Part XII. of the Act of 1892 :

Provided that any officer or servant of the Corporation who has while such officer or servant also acted or performed any duty as officer or servant of the River Tyne Port Sanitary Authority or as agent for any assurance or insurance company or society in respect of the insurance of any property of the Corporation shall for all the purposes of this Part of this Act be deemed to have been in the permanent and exclusive service of the Corporation.

Application
of provisions
of Friendly
Societies
Act 1896.

93. Any scheme for the establishment of a superannuation or provident fund under this Act shall not come into operation until the Corporation shall in respect of that fund have been registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Act shall apply as if (A) the Corporation were a society to which that Act applies and were the trustees of such society (B) as if the scheme were the rules of such society (C) as if the superannuation or provident funds were the funds of such society and (D) as if the contributors to the fund were the members of such society :

Provided that the powers of sections 70 71 73 78 and 79 of the said Act shall not be exercised without the consent of the Corporation.

PART IX.

FINANCE.

Power to
borrow.

94. The Corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest on the following securities and for the following purposes such moneys as they from time to time think requisite for those respective purposes not exceeding the following sums (that is to say) :—

On the security of the improvement rate and the city fund and rate—

(A) For paying the costs charges and expenses of and in relation to this Act as herein-after defined the sum requisite for the purpose :

On the security of the tramway revenue and (collaterally) A.D. 1904.
the tramway rate and city fund and city rate—

(B) For the purposes of constructing the tramways
seventy-five thousand pounds ;

(C) For and in relation to the equipment of the
tramways ninety-five thousand pounds ;

(D) For and in relation to tramway purposes such
sums as the Board of Trade may from time to time
sanction :

On the security of the improvement rate—

(E) For and in relation to the street widenings and
Ouseburn Valley works one hundred and seventy-four
thousand pounds :

On the security of the revenue arising from the quays of
the Corporation and (collaterally) the improvement rate—

(F) For and in relation to the new quay and the
works appliances and conveniences in connexion there-
with three hundred and thirteen thousand pounds ;

(G) For and in relation to works appliances and con-
veniences in connexion with the existing quays two
hundred thousand pounds :

And in calculating the sums which the Corporation may borrow
under the provisions of any other enactment any sums they may
borrow under this Act shall not be reckoned and the powers
of the Corporation as to borrowing and re-borrowing under and
for the purposes of this Act shall not be restricted by any of
the provisions of the Public Health Acts.

95. The following sections of the Public Health Act 1875 Provision as
to mortgages.
shall extend and apply mutatis mutandis to and in relation to all
mortgages made under the powers of this Act (that is to say):—

Section 236 (Form of mortgage) ;

Section 237 (Register of mortgages) ; and

Section 238 (Transfer of mortgages).

96. The following sections of the following Acts (that is Incorporat-
ing certain
sections of
Acts of 1892
and 1899.
to say):—

Of the Act of 1892—

Section 145 (Corporation not to regard trusts) :

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Of the Act of 1899—

- Section 79 (Sinking funds for moneys borrowed and hereafter to be borrowed);
- Section 80 (Provision as to increase and reduction of payments to sinking funds);
- Section 82 (Power to borrow under Local Loans Act 1875);
- Section 83 (Power to re-borrow);
- Section 85 (Application of borrowed moneys);
- Section 86 (Appointment of receiver);
- Section 87 (Saving of charges);
- Section 90 (Protection of lenders from inquiry);
- Section 96 (Annual return to Local Government Board with respect to sinking funds);

shall subject to the provisions of this Act extend and apply mutatis mutandis to and in relation to the moneys borrowed by the Corporation under the powers of this Act and to the repayment thereof.

Periods for
 repayment of
 borrowed
 moneys.

97. The prescribed period mentioned in the said sections 79 80 and 82 of the Act of 1899 incorporated with this Act shall be as regards all moneys borrowed under the powers of this Act or under the powers of the Local Loans Act 1875 for the purposes respectively mentioned in the following subsections of the section of this Act the marginal note whereof is "Power to borrow" the following respective periods (that is to say):—

- For the purpose in subsection (A) five years from the passing of this Act;
- For the purposes of subsections (B) and (C) thirty years from the date of the borrowing of such money;
- For the purposes of subsection (D) such period or periods as the Board of Trade may sanction;
- For the purposes in subsections (E) and (F) sixty years; and
- For the purposes of subsection (G) forty years from the respective dates of the borrowing of such moneys respectively.

Expenses of
 execution of
 Act.

98. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (including all costs charges and expenses of and in relation to the borrowing of any moneys under the powers of this Act and all interest on and all instalments appropriations and sinking fund payments in respect

of such borrowed moneys) but except such of those expenses as are properly chargeable to capital and payable out of borrowed moneys shall be paid as follows:— A.D. 1904.

So far as relates to tramways—

Out of the tramway revenue and if and so far as that revenue proves insufficient for the purpose out of the tramway rate and subject thereto out of the city fund and city rate:

So far as relates to street widenings and Ouseburn Valley works—

Out of the improvement rate:

So far as relates to the quays of the Corporation—

Out of the revenue arising from the quays of the Corporation and if and so far as that revenue proves insufficient for the purpose out of the improvement rate.

99. The following sections of the Act of 1899 (that is to say):— Incorporating certain provisions of Act of 1899.

Section 92 (Application of tramway revenue);

Section 93 (As to deficiency in tramway revenue);

Section 94 (Annual estimate for tramways);

shall subject to the provisions of this Act extend and apply mutatis mutandis to and in relation to the tramways:

Provided that before carrying any balance of the tramway revenue in any year to the city fund the Corporation shall pay the interest on moneys borrowed by them under and provide the requisite instalments appropriation or sinking fund payments prescribed by this Act and the said section 92 shall be read and construed accordingly.

100. The limit of the amount of the general rate in any year as fixed by the Act of 1865 is hereby extended from two shillings in the pound to two shillings and threepence in the pound on the annual value of the property assessed to that rate. Increase of limit of general rate.

101. The following provisions of the Act of 1902 shall be incorporated with and form part of this Act (that is to say):— Incorporation of certain sections of Act of 1902.

Section 44 (Audit of accounts);

Section 45 (Inquiries by and expenses of Local Government Board);

Section 46 (Powers of Act cumulative).

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Amendment
of section 83
of Act of
1899.

Date for
accounts.

102. The period of two years shall be substituted for the period of twelve months specified in section 83 (Power to re-borrow) of the Act of 1899 and the said section shall be read and have effect accordingly.

103. From and after the passing of this Act the date to which the annual accounts of the Corporation shall be made out shall be the thirty-first day of March in each year in lieu of the twenty-fifth day of March in each year.

PART X.

MISCELLANEOUS.

Confirmation
of deed as to
Laing Art
Gallery.

104. The deed dated the third day of April one thousand nine hundred and one and made between the Corporation of the one part and Alexander Laing of Newcastle-upon-Tyne of the other part as set forth in the Second Schedule to this Act shall be and the same is hereby confirmed and made binding upon the parties thereto respectively and the covenants and agreements on the part of the Corporation contained in the said deed shall be valid and enforceable against the Corporation.

Sale of cer-
tain outlying
portions of
Castle
Leazes.

105.—(1) The Corporation may with the consent of the stewards' committee sell and dispose of the three pieces of land containing respectively one rood and twenty-five poles seventeen poles and four and one-half poles forming part of the Castle Leazes coloured green and yellow on the plan signed in duplicate by the Right Honourable the Lord Balfour of Burleigh (one copy of which has been deposited in the Parliament Office House of Lords and one copy in the Private Bill Office of the House of Commons) or any of them or any part or parts thereof upon such terms and conditions in relation to the proportions in which the purchase money shall be paid to the Corporation and the stewards' committee respectively for their respective rights in the land sold and in relation to other matters in connexion with such sale as shall be agreed upon between the Corporation and the stewards' committee and may convey the same to the purchaser or purchasers thereof and so long as all or any or either or any part or parts of such land shall not be sold as aforesaid the stewards' committee may with the consent of the Corporation and upon such terms and conditions in relation to the proportion in which any rent to be received therefor shall be paid to the Corporation and the stewards' committee respectively and in relation to other matters in connexion with such letting as shall be agreed upon between the Corporation and the stewards' committee let such

pieces of land or any or either of them or any part or parts thereof which may not have been sold to any adjoining owner on a yearly tenancy but so nevertheless that during such tenancy the said lands shall only be used as shrubberies or garden ground and no permanent erection whatever save a fence enclosing the same shall be placed thereon. A.D. 1904.

(2) Upon the execution of the conveyance of any of the said pieces of land or any part or parts thereof respectively all herbage right on the land so conveyed shall be by virtue of this Act extinguished.

106. The proceeds of any such sale may be applied as follows :— Application
of proceeds
of sale of
such land.

(1) The proportion of the proceeds of any such sale which shall have been agreed between the Corporation and the stewards' committee to be apportioned to the Corporation may be applied by the Corporation to any of the purposes of sections 8 or 13 of the Act of 1870 or section 105 of the Act of 1892 to which capital is properly applicable and pending such application shall be invested by the Corporation in or upon any statutory securities and the annual proceeds of such securities may be applied by the Corporation to any of the purposes of the said sections 8 and 13 of the Act of 1870 or section 105 of the Act of 1892 and in default of such application shall be paid to the city fund :

(2) The proportion of the proceeds of any such sale which shall have been agreed between the Corporation and the stewards' committee to be apportioned to the stewards' committee may be applied by the stewards' committee in draining or otherwise improving the town moor and pending such application shall be invested by the stewards' committee in or upon any securities in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and the income arising from such investment shall be expended by the stewards' committee upon the general improvement of the town moor :

(3) Any rents arising from the letting of the said pieces of land shall be applied by the Corporation and the stewards' committee respectively in the same manner as the income arising from any such investment as aforesaid.

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As to use of
generating
station.

107.—(1) The Corporation may use their existing generating station and any additions thereto and the engines dynamos electric plant and works therein for generating electric energy for the purposes of the Corporation tramways and the quays of the Corporation and for any other purpose for which electricity can under any existing statutory or other right power or authority be used by the Corporation and may use for all or any of the purposes aforesaid the electric energy so generated.

(2) The Corporation shall have the same powers with respect to conveying electricity from the said generating station to any point on the tramways or the quays of the Corporation or to any point or points within the city at which electricity may be required as they now have or are entitled to exercise with respect to the conveyance of electricity for use upon the existing tramways.

(3) Nothing in this section shall alter or affect the rights and obligations of the parties to the agreement dated the tenth day of March one thousand nine hundred and two and made between the Corporation of the one part and the Walker Urban District Council of the other part which agreement is scheduled to and confirmed by the Act of 1902 and the said agreement shall apply to the portion of Tramway No. 8 by this Act authorised which is proposed to be constructed in the urban district of Walker in the same manner as if the said portion of the said tramway were one of the tramways mentioned in the said agreement to be constructed in the said urban district and nothing in this section shall alter prejudice or affect the rights powers or privileges of the Newcastle-upon-Tyne Electric Supply Company Limited (herein-after called "the company") under the agreement dated the twenty-seventh day of March one thousand nine hundred and three made between the Walker Urban District Council and the company and scheduled to and confirmed by the Newcastle-upon-Tyne Electric Supply Company's Act 1903.

(4) The Corporation shall not under the powers of this section supply electrical energy to any other person.

As to appeal.

108. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or revocation of any certificate licence consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order made by a court of summary

jurisdiction under any provision of this Act may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal. A.D. 1904.

109. Save as otherwise by this Act specially provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties.

110. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts. Provided that where any such compensation costs damages or expenses is or are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such compensation costs damages or expenses in case of dispute may be ascertained by the court before whom any offender is convicted. Compensation &c. how to be determined.

111. The Corporation when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent. Compensation may be in land &c.

112. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments &c

113. Proceedings for the recovery of any demand made under the authority of this Act or the former Acts or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any court of competent jurisdiction. Recovery of demands.

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Saving rights
of Tyne Im-
provement
Commis-
sioners.

114. Save as in this Act provided nothing in this Act contained shall in any manner prejudice diminish alter or take away any of the rights or privileges or any power jurisdiction or authority now vested in or enjoyed by the Tyne Improvement Commissioners but all such rights and privileges and every such power jurisdiction and authority shall save as aforesaid continue and be in force as if this Act had not been passed.

Saving rights
of Crown.

115. Nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such commissioners and such board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Saving rights
of Corpora-
tion.

116. Nothing contained in this Act shall operate to take away or abridge any right title or interest of the Corporation into or over the foreshore or bed of the River Tyne or any tributary thereof Provided always that nothing herein contained shall be held to recognise or confirm any right title or claim of the Corporation to the foreshore or bed aforesaid but the right and title to such foreshore or bed shall remain in the same state as if this Act had not been passed.

Crown rights.

117. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Costs of Act.

118. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the improvement rate and the city fund or city rate or out of moneys to be borrowed under the provisions of this Act as herein-before provided.

The SCHEDULES referred to in the foregoing Act.

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THE FIRST SCHEDULE.

FORMER ACTS AND ORDERS.

1 Victoria chapter lxxii. intituled "An Act for Regulating and Improving the Borough of Newcastle-upon-Tyne."

4 & 5 Victoria chapter lxxi. intituled "An Act to alter and extend an Act passed in the first year of the reign of Her present Majesty intituled 'An Act for Regulating and Improving the Borough of Newcastle-upon-Tyne.'"

9 & 10 Victoria chapter cxxi. "The Newcastle-upon-Tyne Improvement Act 1846."

13 & 14 Victoria chapter lxxvii. "The Newcastle-upon-Tyne Improvement Act 1850."

16 & 17 Victoria chapter clxxxii. "The Newcastle-upon-Tyne Improvement Act 1853."

18 & 19 Victoria chapter xcix. "The Newcastle-upon-Tyne Improvement Act 1855."

28 & 29 Victoria chapter ccl. "The Newcastle-upon-Tyne Improvement Act 1865."

33 & 34 Victoria chapter cxx. "The Newcastle-upon-Tyne Improvement Act 1870."

34 & 35 Victoria chapter cxxxv. "The Newcastle-upon-Tyne Improvement Act 1871."

40 & 41 Victoria chapter cli. "The Newcastle-upon-Tyne Tramways and Improvement Act 1877."

"The Newcastle-upon-Tyne Tramways Order 1879" confirmed by "The Tramways Orders Confirmation Act 1879" chapter cxcii.

45 & 46 Victoria chapter clxxii. "The Newcastle-upon-Tyne Improvement Act 1882."

45 & 46 Victoria chapter ccxxxv. "The Newcastle-upon-Tyne Corporation Loans Act 1882."

Provisional Order relating to the City of Newcastle-upon-Tyne confirmed by "The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1887" chapter cxi.

55 & 56 Victoria chapter ccxxxvi. "The Newcastle-upon-Tyne Improvement Act 1892."

57 & 58 Victoria chapter cxl. "The Newcastle-upon-Tyne Corporation (Byker Bridge &c.) Act 1894."

"The Newcastle-upon-Tyne Tramways Order 1895" confirmed by "The Tramways Orders Confirmation (No. 2) Act 1895" chapter ci.

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61 & 62 Victoria chapter ccxxvii. "The Newcastle-upon-Tyne Corporation (New Infirmary Site) Act 1898."

62 & 63 Victoria chapter cclxv. "The Newcastle-upon-Tyne Tramways and Improvement Act 1899."

2 Edward VII. chapter cxxi. "The Newcastle-upon-Tyne Corporation Tramways Extensions Act 1902."

"The Newcastle-upon-Tyne Tramways Order 1903" confirmed by "The Tramways Orders Confirmation (No. 1) Act 1903" 3 Edward VII. chapter cxlv.

THE SECOND SCHEDULE.

THIS DEED is made the third day of April one thousand nine hundred and one between the MAYOR ALDERMEN AND CITIZENS OF THE CITY AND COUNTY OF NEWCASTLE-UPON-TYNE (herein-after referred to as "the Corporation") of the one part and ALEXANDER LAING of Newcastle-upon-Tyne wine and spirit merchant (herein-after referred to as "the Donor") of the other part as follows :—

1. WHEREAS a public meeting of the inhabitants of the city was held on the twelfth day of October one thousand eight hundred and ninety-nine for the purpose of considering the desirability of establishing an art gallery for the city and a committee was formed to collect subscriptions to create a fund for the purpose of erecting one but the committee only succeeded in obtaining promises of subscriptions to the amount of one thousand two hundred pounds while it is found that a sum of about twenty thousand pounds will be required :

2. And whereas the Corporation are the owners in fee simple in possession of the piece of ground situate in Higham Place Newcastle-upon-Tyne and delineated in the plan drawn on these presents and therein distinguished by a yellow verge line :

3. And whereas the Donor has offered to the Corporation that if they would appropriate in perpetuity the said piece of ground for the purpose of an art gallery he would at his own expense erect such a gallery to be called "The Laing Art Gallery" and the Corporation considering that it would be highly beneficial to the public to accept the said offer have accepted the same :

4. Now these presents witness that in consideration of the covenant on the part of the Donor herein-after contained the Corporation with the sanction of the Local Government Board (testified by a sanction under their seal of office dated the eleventh day of March one thousand nine hundred and one) do as beneficial owners covenant and declare with and to the Donor that the Corporation will at all times hereafter stand seized of the said piece of ground upon trust to permit the Donor his executors or

administrators to enter upon the said piece of ground and erect thereon an art gallery according to plans prepared by Messrs. J. T. Cackett and Burns Dick of Newcastle-upon-Tyne architects (which plans are for the purpose of identification signed by the town clerk of the Corporation and the Donor) subject to any modification of details that may be mutually agreed upon between the Corporation and the Donor or his executors or administrators but without such mutual agreement the said plans shall be strictly adhered to especially as to there being no entrance except from Higham Place And further that the said piece of ground and art gallery shall from the completion of the gallery and for ever thereafter be maintained in good repair and condition by the Corporation and unaltered except in the way of enlargement and shall be used solely for the purpose of an art gallery styled "The Laing Art Gallery" and shall be under the general management regulation and control of the Corporation or a committee appointed by the Corporation as provided by the Public Libraries Act 1892 one half of the members of the committee being selected from the council and the other half from outside the council. A.D. 1904.

5. And the Corporation expressly covenants with the Donor and his executors and administrators that the said piece of ground and art gallery shall for ever be maintained by them and used solely for the purpose of an art gallery under the name of "The Laing Art Gallery" and that no part thereof shall be used for any other purpose nor shall any part thereof be sold mortgaged or let or alienated for any estate term right or interest whatsoever And also that any buildings erected upon the said piece of ground coloured round with blue upon the said plan drawn on these presents shall not exceed sixteen feet in height to the eaves thereof and the eastern outer wall thereof adjoining the said ground coloured round with yellow on the said plan shall be faced with white glazed bricks and the Corporation further covenants and declares with and to the Donor his executors or administrators that if the Donor his executors or administrators shall be prevented by any court of competent jurisdiction from erecting or further proceeding with the erection of the said gallery or the gallery or the partially erected gallery shall be ordered to be pulled down or removed or if any legal proceedings shall be instituted in relation to injury or alleged injury to property or to ancient lights whether prosecuted to judgment or not and whether resulting in the prevention or removal of buildings or in damages then in all or any of these cases the Corporation will repay to the Donor his executors or administrators all moneys and expenses paid or incurred by him or them in or about such erection or partial erection as aforesaid of buildings ordered to be pulled down or removed or the further erection of which is prevented and all moneys damages and expenses paid or incurred by him or them in or about such legal proceedings as aforesaid or otherwise incurred by him in or about or in relation to these presents or any of the matters thereof and further that the next time the Corporation make or cause to be made application to Parliament for an Act for any general purposes of town improvement they will insert in the Bill and use their utmost endeavours to get passed

A.D. 1904. a clause confirming these presents and declaring that the covenants and declarations of the Corporation herein-before contained shall be deemed to be valid and shall be performed and observed by the Corporation in all respects.

6. And in consideration of and in reliance on the aforesaid covenants and declarations on the part of the Corporation the Donor covenants with the Corporation that he his executors or administrators will erect and complete in a good and substantial manner in all respects to the satisfaction of the said architects an art gallery on the said piece of ground according to the said plans as aforesaid and will expend in such erection the sum of about twenty thousand pounds.

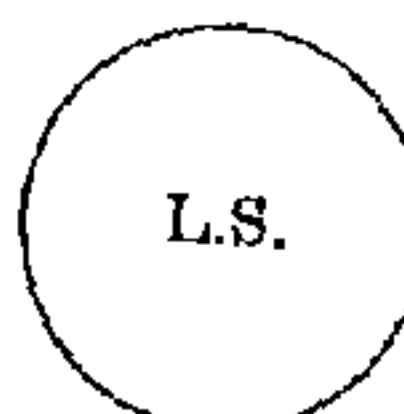
As witness the seal of the Corporation and the hand and seal of the Donor.

JOHN BEATTIE
 Mayor.

HILL MOTUM
 Town Clerk.



Signed sealed and delivered by
 the said Alexander Laing } ALEXANDER LAING.
 in the presence of—



GEORGE RIX DUNCAN
 Solicitor
 North Shields.

THE THIRD SCHEDULE.

PACKAGE DUES.

Ale porter and beer	-	-	-	-	6d. per ton.
Ammonia sulphate of	-	-	-	-	4d. per ton.
Apples and pears in bulk or in casks	-	-	-	-	8d. per ton.
„ „ in baskets	-	-	-	-	8d. per ton.
Artificial manure	-	-	-	-	4d. per ton.
Asphalte	-	-	-	-	6d. per ton.
Bacon	-	-	-	-	9d. per ton.
Bags	-	-	-	-	} Of every description 3d. every 100.
„ not otherwise enumerated	-	-	-	-	
„ old	-	-	-	-	
Baskets	-	-	-	-	6d. per 100.
Beans	-	-	-	-	3d. per 5 quarters.
Bedsteads iron	-	-	-	-	3d. each.

[4 EDW. 7.] *Newcastle-upon-Tyne Corporation* [Ch. ccxx.]
Act, 1904.

Beef and pork	-	-	-	-	$\frac{1}{2}d.$ per cwt.	A.D. 1904.
Bellows	-	-	-	-	1d. each.	—
Berries juniper bilberry yellow bay and other berries.	-	-	-	-	1s. per ton.	
Bi-carbonate of soda	-	-	-	-	4d. per ton.	
Bi-chromate of potash	-	-	-	-	4d. per ton.	
Biscuits in sacks boxes or tins	-	-	-	-	8d. per ton.	
Books	-	-	-	-	6d. per 10 packages.	
Boots and shoes	-	-	-	-	6d. per 10 packages.	
Bottles glass empty	-	-	-	-	6d. per ton.	
Black beer	-	-	-	-	1d. per keg.	
Bran	-	-	-	-	6d. per ton.	
Brandied and other preserved fruit	-	-	-	-	1s. per ton.	
Bricks	-	-	-	-	3d. per 1,000.	
„ bath	-	-	-	-	3d. per ton.	
Brushes	-	-	-	-	1s. per ton.	
Brush handles	-	-	-	-	6d. per ton.	
Butter	-	-	-	-	6d. per ton.	
Bullion	-	-	-	-	1d. per £1 sterling.	
Cabbages	-	-	-	-	3d. per 100.	
Cables chain hemp or coir	-	-	-	-	6d. per ton.	
Candles	-	-	-	-	6d. per ton.	
Candlewick	-	-	-	-	6d. per ton.	
Cards small	-	-	-	-	1d. per package.	
„ playing	-	-	-	-	1d. per package.	
Carpets	-	-	-	-	1s. per ton.	
Carts	-	-	-	-	3d. each.	
Castor seed	-	-	-	-	3d. per 5 quarters.	
Caviare	-	-	-	-	1s. per 10 packages.	
Cement or pozzolana	-	-	-	-	6d. per ton.	
Chaises or carriages	-	-	-	-	2s. each.	
Cheese	-	-	-	-	6d. per ton.	
Cherries	-	-	-	-	3d. per 10 baskets or packages.	
Chinaware	-	-	-	-	6d. per 10 packages.	
Cider	-	-	-	-	1d. per barrel.	
Cigars per 10 boxes of 1 lb. each	-	-	-	-	6d. per 10 boxes of 1 lb. each.	
Clay	-	-	-	-	3d. per ton.	
Clocks	-	-	-	-	3d. per case.	
Clover and Lucerne seed	-	-	-	-	3d. per 5 quarters.	
Cocoa paste or ground	-	-	-	-	6d. per ton.	
Coffee in cases or casks	-	-	-	-	6d. per ton.	
„ in bags	-	-	-	-	6d. per ton.	
Confectionery	-	-	-	-	1d. per case.	
Copper copper nails and sheets	-	-	-	-	8d. per ton.	
„ ore	-	-	-	-	3d. per ton.	

A.D. 1904.	Coprolites	-	-	-	-	3d. per ton.
—	Coriander seed	-	-	-	-	3d. per 5 quarters.
	Cork wood	-	-	-	-	9d. per ton.
	Corks manufactured	-	-	-	-	1s. per ton.
	Cranberries in kegs or small barrels	-	-	-	-	1s. per ton.
	„ in casks	-	-	-	-	1s. per ton.
	Cucumbers	-	-	-	-	3d. per 100.
	Cummin seed	-	-	-	-	3d. per 5 quarters.
	Currants	-	-	-	-	8d. per ton.
	Currant berries red black or white in small baskets.	-	-	-	-	3d. per 10 baskets.
	Deer	-	-	-	-	1d. each.
	Drugs not otherwise enumerated	-	-	-	-	1s. per ton.
	Earthenware in crates	-	-	-	-	6d. per ton.
	„ in smaller packages	-	-	-	-	6d. per ton.
	„ in bulk	-	-	-	-	6d. per ton.
	Eau de Cologne	-	-	-	-	6d. per 10 cases.
	Eggs	-	-	-	-	3d. per 1,000.
	Fans	-	-	-	-	6d. per 10 cases or boxes.
	Farina	-	-	-	-	9d. per ton.
	Figs	-	-	-	-	1s. per ton.
	Fish not otherwise enumerated	-	-	-	-	6d. per ton.
	„ in bulk	-	-	-	-	6d. per ton.
	Flax	-	-	-	-	6d. per ton.
	Fruit not otherwise enumerated	-	-	-	-	8d. per ton.
	Furniture not otherwise enumerated	-	-	-	-	1s. per ton weight or measurement.
	Game	-	-	-	-	6d. per 10 brace.
	Garden seats	-	-	-	-	1s. per ton weight or measurement.
	Glassware	-	-	-	-	1s. per ton.
	Glass large cases or crates	-	-	-	-	8d. per ton.
	Glucose	-	-	-	-	6d. per ton.
	Gooseberries	-	-	-	-	8d. per ton.
	Grain	-	-	-	-	3d. per 5 quarters.
	Grapes	-	-	-	-	1s. 6d. per ton.
	Granite rough	-	-	-	-	4d. per ton.
	„ sculptured or polished	-	-	-	-	1s. per ton.
	Grindstones	-	-	-	-	6d. per ton.
	Hair	-	-	-	-	8d. per ton.
	Hams	-	-	-	-	9d. per ton.
	Hardware in mall cases	-	-	-	-	1d. per case.
	„ in large cases or loose	-	-	-	-	6d. per ton.
	Hay	-	-	-	-	6d. per ton.
	Horses	-	-	-	-	1s. each.
	Lambs	-	-	-	-	1d. each.

[4 EDW. 7.]

Newcastle-upon-Tyne Corporation
Act, 1904.

[Ch. CCXX.]

A.D. 1904.

Lard	-	-	-	-	-	6d. per ton.
Lead pig or sheet	-	-	-	-	-	6d. per ton.
„ white and red	-	-	-	-	-	6d. per ton.
„ chromate or litharge	-	-	-	-	-	6d. per ton.
Leather	-	-	-	-	-	6d. per ton.
Lemon peel	-	-	-	-	-	8d. per ton.
Limes	-	-	-	-	-	8d. per ton.
Limestone	-	-	-	-	-	2d. per ton.
Linseed	-	-	-	-	-	3d. per 5 quarters.
„ cakes	-	-	-	-	-	6d. per ton.
Machinery	-	-	-	-	-	1s. per ton.
Marble baths	-	-	-	-	-	1s. per ton.
„ mortars	-	-	-	-	-	1s. per ton.
„ sculptured works of art and slabs	-	-	-	-	-	1s. per ton.
Marbles	-	-	-	-	-	6d. per ton.
Matches	-	-	-	-	-	1s. per ton weight or measurement.
Meal	-	-	-	-	-	6d. per ton.
Milk condensed	-	-	-	-	-	1s. per ton.
Moss litter rock or Iceland	-	-	-	-	-	6d. per ton.
Mouldings gilt	-	-	-	-	-	1s. per ton weight or measurement.
Mules	-	-	-	-	-	6d. each.
Musical instruments	-	-	-	-	-	1d. per case.
Mutton and lamb	-	-	-	-	-	$\frac{1}{2}$ d. per cwt.
Nails	-	-	-	-	-	6d. per ton.
Oil in casks	-	-	-	-	-	6d. per ton.
„ in boxes or cases	-	-	-	-	-	1s. per ton.
„ cake	-	-	-	-	-	6d. per ton.
Onions in bags or baskets	-	-	-	-	-	6d. per ton.
Oranges and lemons	-	-	-	-	-	8d. per ton.
Ore-lead	-	-	-	-	-	2d. per ton.
„ purple	-	-	-	-	-	1d. per ton.
„ iron coastwise	-	-	-	-	-	1d. per ton.
„ „ from foreign ports	-	-	-	-	-	1d. per ton.
„ burnt sulphur	-	-	-	-	-	1d. per ton.
„ chrome	-	-	-	-	-	2d. per ton.
Oysters	-	-	-	-	-	1s. per ton.
Paintings oil	-	-	-	-	-	1d. each.
Paper and pasteboard	-	-	-	-	-	1s. per ton.
Paperhangings	-	-	-	-	-	1s. per ton.
Pearl barley	-	-	-	-	-	4d. per ton.
Peas	-	-	-	-	-	3d. per 5 quarters.
„ green	-	-	-	-	-	1s. per ton.
Phosphate rock	-	-	-	-	-	2d. per ton.
Pianofortes	-	-	-	-	-	2s. each
Pictures	-	-	-	-	-	2s. per ton weight or measurement.

A.D. 1904.	Pill boxes	-	-	-	-	1d. per package.
	Pigs sheep and lambs	-	-	-	-	1d. each.
	Plums	-	-	-	-	1s. per ton.
	Ponies and mules	-	-	-	-	6d. each.
	Potatoes in baskets	-	-	-	-	2½d. every 10 baskets.
	„ loose	-	-	-	-	3½d. per ton.
	Prunes	-	-	-	-	10d. per ton.
	Radishes	-	-	-	-	1s. per ton.
	Rags	-	-	-	-	6d. per ton.
	Raisins in boxes baskets or drums	-	-	-	-	8d. per ton.
	„ in casks or other large packages	-	-	-	-	8d. per ton.
	Rape cake	-	-	-	-	6d. per ton.
	„ seed	-	-	-	-	3d. per 5 quarters.
	Rice	-	-	-	-	4d. per ton.
	Sand	-	-	-	-	4d. per ton.
	Seeds hemp and mustard	-	-	-	-	3d. per 5 quarters.
	„ not otherwise rated	-	-	-	-	3d. per 5 quarters.
	Sheep	-	-	-	-	1d. each.
	Silver sand	-	-	-	-	4d. per ton.
	Skins seal	-	-	-	-	9d. per ton.
	„ hare and rabbit	-	-	-	-	9d. per ton.
	„ other skins and hides	-	-	-	-	9d. per ton.
	Slates	-	-	-	-	6d. per ton.
	„ in frames	-	-	-	-	1s. per ton.
	„ pencils	-	-	-	-	1s. per ton.
	„ tile stones	-	-	-	-	6d. per ton.
	Soap	-	-	-	-	6d. per ton.
	„ perfumed	-	-	-	-	1s. per ton.
	Spirits wines and cordials	-	-	-	-	1d. per trade case.
	Steel	-	-	-	-	6d. per ton.
	Straw plait or rope	-	-	-	-	6d. per ton.
	Sugar	-	-	-	-	6d. per ton.
	Tares	-	-	-	-	3d. per 5 quarters.
	Tea in caddies chests half-chests or packages	-	-	-	-	1s. 6d. per ton.
	Tobacco in hogsheads	-	-	-	-	1s. per ton.
	„ in other packages	-	-	-	-	1s. per ton.
	Toys in large cases or vats	-	-	-	-	} 6d. per ton weight or measurement.
	„ in small cases or vats	-	-	-	-	
	Waters mineral and other waters	-	-	-	-	1s. 6d. per ton.
	Wood anchor stocks	-	-	-	-	} 6d. per ton.
	„ axe helves	-	-	-	-	
	„ brush wood	-	-	-	-	
	„ bow staves	-	-	-	-	
	„ battens and batten ends	-	-	-	-	
	„ cedar ebony	-	-	-	-	
	„ cloven boards	-	-	-	-	
	„ cloth board	-	-	-	-	
	„ deals and deal ends	-	-	-	-	

[4 EDW. 7.] *Newcastle-upon-Tyne Corporation* [Ch. ccxx.]
Act, 1904.

					A.D. 1904.
Wood deck deals	-	-	-	-	—
„ dye woods not otherwise rated	-	-	-	-	
„ elm timber	-	-	-	-	
„ fire	-	-	-	-	
„ greenheart	-	-	-	-	
„ handspikes	-	-	-	-	
„ hardwood	-	-	-	-	
„ birch timber	-	-	-	-	
„ knees	-	-	-	-	
„ oak timber and planks	-	-	-	-	
„ teak wood	-	-	-	-	
„ hoops at the average size of 7 feet	-	-	-	-	
„ lath	-	-	-	-	
„ lignum vitæ	-	-	-	-	
„ log maple and sandal	-	-	-	-	
„ mahogany rosewood satin and other furni- ture wood	-	-	-	-	
„ masts above 6 inches	-	-	-	-	
„ oars for boats	-	-	-	-	
„ pit props	-	-	-	-	
„ paling boards	-	-	-	-	
„ quarters	-	-	-	-	
„ scoops	-	-	-	-	
„ shovels	-	-	-	-	6d. per ton.
„ shoes	-	-	-	-	
„ sleepers	-	-	-	-	
„ softwood	-	-	-	-	
„ fir timber	-	-	-	-	
„ pine timber	-	-	-	-	
„ spars under 6 inches	-	-	-	-	
„ spouts	-	-	-	-	
„ spokes	-	-	-	-	
„ staves pipes	-	-	-	-	
„ „ hogsheads	-	-	-	-	
„ „ barrels	-	-	-	-	
„ Scotch timber deals and palings	-	-	-	-	
„ tree nails	-	-	-	-	
„ troughs	-	-	-	-	
„ timber every description of foreign and colonial timber not enumerated in this schedule	-	-	-	-	
„ uffer	-	-	-	-	
„ wainscot logs	-	-	-	-	
„ veneers	-	-	-	-	
„ flooring deals	-	-	-	-	
„ pulp	-	-	-	-	

A.D. 1904.

THE FOURTH SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE
REQUIRED BY THE CORPORATION.

Parish.	Number on deposited Plans.
STREET WORK NO. 2.	
Jesmond - - - - -	7.
OUSEBURN VALLEY WORKS.	
Works Numbers 1 2 3 and 4.	
Byker - - - - -	112 127 132.
Benton - - - - -	165 to 173 (both numbers inclusive).
Jesmond - - - - -	196 200.
QUAY EXTENSION AND IMPROVEMENT.	
Works Numbers 1 2 and 3.	
All Saints - - - - -	39 89.

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FOR
T. DIGBY PICOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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